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Loudoun County Board of Supervisors, Public Hearing, Wednesday, June 10, 2026

Date Wednesday, June 10, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 3h 10m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8198>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8198>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:10:49] I do know that. And, yeah, I do know that. I do know that. My staff went out there, too. Yeah. Hey, guys, we're going to hit the gavel. Well, good evening, supervisors, good evening, staff, and good evening, Loudon.

[00:11:08] I'm going to call to order—I'm going to call to order the June 10th, 2026 Loudon County Board of Supervisors public hearing and the Joint Board of Supervisors and Virginia Department of Transportation public hearing. This room has a hearing loop.

[00:11:24] If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to ask for one. And would everybody please join me in the Pledge of Allegiance. Pledge of Allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:11:51] Okay. I want everyone to be advised that the Planning Commission forwarded item LEGIE 2025-0012, the Golden Substation, which is also CPMT, Commission Permit 2025-0005, special exception 2025-0032, special exception 2025-0033, and special exception 2025-0137 to a future Planning Commission work session, and as such, that will not be in tonight's agenda.

[00:12:24] This item was double advertised for the May 26, 2026, and the June 10th board public hearing. Also, the LEGIE 2025-0052, R&D Hamilton Academy, Special Exception 2026-0005, Special Exception 2026-0006, Special Exception 2026-0007, It's also being deferred due to a noticing area of the applicant.

[00:12:57] That has been rescheduled for the July 15th public hearing. Now, if you are here and you want to speak about the R&D Hamilton, you can absolutely do that. You can stay. You can speak. It was advertised on the public hearing. The applicant had a noticing area, so if you want to speak, you can.

[00:13:15] If you do not want to, then when I get to your name, I'll just go right by you. when we take it up on June and July, rather. You can speak today and again in July, or you can just wait till July. Either way, any of it is fine with that. So if you're here for that item, you can feel free to stay in to speak on that.

[00:13:31] As a reminder, if you are here from the public this evening, you may only sign up to speak on items that are actually on the agenda and that have been advertised for the public hearing. If you signed up to speak, your allotted time is two minutes. If you're in the board, when your name is called, please come to the podium closest to you and state your name for the record, if you don't mind.

[00:13:54] The timer on the podium will tell you how much time you have left. When your time has expired, please yield the floor to the next speaker. If you are providing your comments via phone and you cannot see the timer in our room, I'm going to ask you, if you can hear me if you're on the phone, to set your own clock or your own timer.

[00:14:14] And that's because when you get to one minute and 30 seconds, I don't want to stop you because then that breaks your flow, breaks your thought process. But when you get to two minutes, I will stop you. So if you don't mind setting your own timer, that would be most helpful. When taking input for public items, I'm going to first ask if there's anyone in the boardroom that wishes to speak.

[00:14:33] And then I would go to the moderator and ask if there's anyone online who wants to speak. Please note that there is a slight delay between the broadcast and the boardroom. Having said that, Andy, can you hear me? Yes, Madam Chair, loud and clear. How are you doing, sir?

[00:14:50] Pretty good. Wonderful. Okay, so right now what I'm going to do, we're going to do the Joint Board Supervisors and Virginia Department of Transportation Public Hearing first. It is the Secondary Road Six-Year Plan Construction Improvement Budgetary Priority List. It's a county-wide item, although usually on county-wide item motions, I will make the motions.

[00:15:12] But on this one, if Mr. Kirshner wants to make the motion, I'll let that happen because most of these secondary votes are actually in his district. And so if you want to make the motion, that's fine with me, Mr. Kirshner. Or if you want me to, I'm happy to do that as well. Would any staff please come to the table for this item, including VDOT staff?

[00:15:30] How are you all doing?

[00:15:47] It's good to see you. I feel like I haven't seen you in a really long time, so it's good to see you. We do have a six-slide presentation. Would you all like to do that right now? Yes, we would, Chair.

[00:16:05] How about this? How about you guys introduce yourselves first? Yeah, remember. Hi, Kelly Griffin with the Department of Transportation and Capital Infrastructure, and I am joined by Everett Lott, our Assistant Director.

[00:16:21] Yep, thank you. Sunil Teori from VDOT and Andy Beecher from VDOT. Hi, how are you all doing? all right ready when you are great so we are here this evening to present the fiscal year 27 to 32 secondary road six-year plan and before i continue i just want to make one clarification on the item subsequent to the board approving the fiscal year 26 to 31 ssyp in july of 25 the limits of hogback mountain road were revised and they were approved at the october 21st 2026 business meeting so the

[00:16:59] Secondary Road Six-Year Plan provides annual allocations to Loudoun County that come from the state district grant program. The allocated funding is used to hard surface unpaved roads in Loudoun County in accordance with VDOT's Rural Rustic Program. And this slide shows the change for this year, which allocates \$2,139,732 in fiscal year 32 for future projects.

[00:17:26] This slide reflects the budget for the annual allocations that come from the state district grant program. Like I said just a slide ago, that one note of addition is the \$2,139,732 in fiscal year 32. And this is what needs to be approved and executed so that we can confirm to VDOT that the county does intend to accept the funds every year. And this slide is the construction budget priority list that gets updated every year. And this is where the roads are programmed for funding.

[00:18:01] What's important to note about this slide is it's different than the past several years. We are not recommending any new roads for paving this year, but the money is accepted for future capital projects. So you'll see on here, typically this is where they would show up and programmed and funded, but there is nothing new.

[00:18:20] This is the same four from last year, same order, same everything. And it is staff's recommendation that the board approve the proposed secondary road six-year plan and authorize the county administrator or his designee to execute the proposed SSYP on behalf of the county.

[00:18:38] We're happy to answer any questions. Wonderful. Thank you. Supervisors, if you have questions, can you turn your lights on, please? Mr. Kirshner. Thank you, Madam Chair, and thank you staff and VDOT for being here. I have a lot to say, and I don't have enough time to say it in.

[00:18:53] But the first thing I want to -- I'm assuming we are not recommending new roads to be hard-surfaced, which is my new terminology, rather than paved. I think that's probably more appropriate. Be hard-surfaced because we are working on specific criteria.

[00:19:09] Is that correct? as to what roads we do or do not pave or do or not keep maintained in Loudoun County. Is that correct? That is correct, Supervisor. We did just receive the guidance from VDOT back in February.

[00:19:25] And so based on that, we will start developing criteria now. And do we think we will have criteria sometime come September-ish, October-ish, or at least something that could be brought to the board? That's my understanding. That's more of a rhetorical question, but I'd like to know for the public purposes. we're going to be working on it, um, to try to meet that deadline. All right. I hope so. Um, the reason is, is, is just for purposes of the public and those who may be paying attention to my fellow colleagues. Um, this has become a very frustrating process for me during my last election, just prior to it. I have what I'm going to call my memoirs, the road wars of 2022 or

[00:20:01] whatever it was. Um, we had a number of public meetings and the problem with our gravel road system is, it divides communities. And there are those, sometimes 50% of it who want it, 50% who don't. And then we as supervisors get stuck in the middle because we don't have a very set criteria. And so

we've been waiting for this for a long, long time. So I'm finally, I'm grateful. I'm grateful we are working towards, and we just did get guidance.

[00:20:26] In my personal opinion, there are some places that may need the rural Rustic Road process, but most of the places in Loudoun County, we have 250 miles of it, do not, will not need it. But what they do need is some significant maintenance, and I think we are pretty lacking in that.

[00:20:43] As a matter of fact, I looked up, and my understanding of the MOU that is between with the state that has been a longstanding goal of VDOT to support locality decisions to provide a hard surface or unpaved secondary roads. It is also understood, and I'm just pointing this out because I know I have VDOT here in front of me, that some localities may wish to improve unpaved roads without providing hard surface.

[00:21:07] And my general feeling is that when I'm working with VDOT and my staff is working with VDOT, it would be preferred that we just hard surface these roads. But that's not our preference as a community or as a county. And the memorandum of understanding says, hey, if the county wants it, they may have the preference.

[00:21:29] But I think we can probably do a lot better job in doing the maintenance than we're doing right now. And I hope that will be part of the criteria on how to accomplish that. So I know I'm out of time. Can I have one last question why are we moving this to July and not maybe later till after we have the criteria?

[00:21:45] Is there any specific reason for that is in the in the draft motion? I believe that was procedural just because we're at a public hearing and then it would have to be forwarded to a business meeting for approval after the public hearing so we just just as a point of Information, of course, we're not here in August right and so if it's if it's not a July meeting

[00:22:20] it wouldn't be till september now if that's if that's what you know the people who who serve the west want to have that discussion that's fine i don't think would that be an issue for you all if it went to august i mean september yeah then we can have that discussion when when a motion's made all right okay mr crony uh thank you chair randall and and i want to echo what supervisor Kirshner said, you know, the war that we have with the roads is real, and it's really exciting

[00:22:54] that we'll be getting a data-driven methodology on how to take care of our rural rustic road network. You know, it's very unique to Loudoun County. I know other counties don't have as many gravel roads.

[00:23:11] And so I look forward to looking at the enhancements that we can do versus paving. I think that that was the reason for the bill that came through the General Assembly, is how can we use this funding to enhance and maintain and better take care of our roads.

[00:23:33] I do want to thank the Rural Roads Committee. Emily and Janie have been great, you know, representing the historic network in rural Loudoun. And a question that I have, when we come back in September with the criteria, can we do a test case or a pilot?

[00:23:56] And could one be from the Catoctin District and one be from the Little River District? Is that something we could look at? Yes, certainly. It will depend on the type of improvement that is proposed and how we can implement it.

[00:24:17] So we just need to figure out what we need to do. So whatever is decided on, that is applicable. And we can come to a consensus that that is a workable solution. Then we can look towards implementing those. Doing a pilot, maybe? Because I know Red Hill Road was hoping to be a pilot of the Enhanced Maintenance Program.

[00:24:42] And Oatlands Road is another one that I get constant complaints on in the Little River District. So it would be great if we could do a pilot. As long as the means and methods are approved, means and methods that have been tried and tested and have worked, a combination of those things, if you want to call that as a pilot, a combination of different things that we've done in different places could be done.

[00:25:06] If something brand new, something that we've not done, any new materials, Those type of things will have to be run by the state central office and materials and all this stuff. So unless those are approved, I'm not sure. We will have to probably get back to you on answering whether truly pilot brand new items that have not been tried.

[00:25:27] Can we use these money stores that or not? Oh, okay. I thought that was part of the General Assembly bill that we could use the funding for those items. My understanding is that you could use the funding to make improvements to the roads without hard surfacing them, but not necessarily what we call in terms of pilot, what we consider pilot as something that we're trying something new that we've not tried before.

[00:25:55] So we can't use those funds for that? Sorry, my screen is up. Maybe somebody else can ask. We have a motion. You can ask questions in the motion. Mr. Vice Chair Turner. Well, thank you. Some years ago, and I've not been paying close attention, but some years ago, there was a discussion about Old Waterford Road, and there was a composite, unpaved way to improve the road.

[00:26:22] It was expensive, but it really reduced maintenance costs, and it really improved the quality of the unpaved road through this composite materials or process. Is that still alive? Is it too expensive? Is it not even on the table, or am I not remembering correctly?

[00:26:43] So that was done with the assistance of our research council as a pilot to try methodology where it was not just the material, but also raising the grade of the road significantly and trying a different type of mechanism for the drainage ditches.

[00:27:02] And hence, you know, so that was a pilot, true pilot. And I think maintenance-wise, I don't know the full statistics of it, but I think it is holding up well. Oh, so the pilot road was built, and we think it's going well.

[00:27:18] So my next obvious question is, is there any plans to incorporate that in future improvements to other unpaved roads? It would be part of the exercise of coming up with a site-specific improvement for that site. That type of improvement was prudent, and so any new site, we will see if similar or any other features that we can improve, that would have to be looked at.

[00:27:41] Okay. That just seemed like an awfully good solution, because we're proud of our unpaved roads, but this would really lower maintenance and make them more navigable. So I was just curious. Another one, and this is off the wall, and you may not know the answer. It's totally fine. I was reading in the National Association of County Community Newsletter the other day, and I was reading it on the fly.

[00:28:00] But the impression I got is they're very concerned. I want to say it's the federal highway program or transportation program. Every five years it has to renew, and it's coming up on renewal, and NACO is concerned that it may not be renewed, which would have a huge ripple effect on state funding of road projects.

[00:28:18] Does any of that ring a bell or make any sense to any of you, or am I just not—did I not read that correctly? I'm sorry. I'm not familiar with that aspect of the federal funding, but I don't know, Andy, if you have any knowledge. No, at this point, I don't have any information to share with you on that, but we can certainly check on it.

[00:28:35] Yeah, and it has something to do with federal highway money that's about to sunset within the next year, and NACO's very concerned it may not get renewed. So anything you find out and drop me a note, that'd be great. Thank you. So first of all, thank you for being here.

[00:28:52] This is not the time, but when I do have time, I might want to talk to you all about snow removal and grass cutting. But right now, as we talk about this, I'm always a little surprised when people move on a gravel road and then demand that the road get paved.

[00:29:09] It's like you moved on a gravel road, and so I'm not quite sure, you know. I also don't know, and if anyone knows this, Mr. Crony, Mr. Kirshner, if there is a difference between just a rural rustic road or if there is roads that we actually consider historic roads.

[00:29:28] And if we consider them historic roads, it's paving them and hard paving them especially versus maintaining them, if they're actually considered a historic road, would it change that if we paved them?

[00:29:46] I mean, how much can you do to something that is historic and that you change the basic quality of it so it's no longer historic? And so I know we have a rural rustic road program and we have a gravel road, and I get all that, but I often hear that our roads are historic.

[00:30:03] I don't know if that's a real thing or not, but if it is a real thing, should we do something different with, quote, historic roads versus rural rustic roads? I would much more be in favor of some type of maintaining that doesn't require a hard surface, because I do think that the character of Western Loudoun County, of rural Loudoun County, part of that character are the rural roads, to be quite honest.

[00:30:33] And I understand that they can be hard on cars and that type of thing, but I will go back to what I said. And I don't mean this flippantly, but I don't know that, you know, I believe if somebody moves there, they know it's there. And so I'm not sure that I want to change the character of what Western Loudoun County is by paving a road, at least not hard paving a road.

[00:30:55] And so some of those would be my questions that I would have. Having said that, I do know we have speakers on this item, and then we'll come back, Mr. Kershner, for a motion. And if you want to adjust the motion, Mr. Kershner, for it to be September, that's fine.

[00:31:14] Okay, cool. We'll bring it up. Okay, that sounds wonderful. All right, our first speaker is Nicholas Graham, followed by Terry Hall, followed by Jeff Fanning. Mr. Graham, it is very good to see you.

[00:31:31] Likewise. Chair Randall. One of the best music albums of all time is Joshua Tree by U2, a masterpiece from 1987. On it is the classic song, Where the Streets Have No Name. I've often listened to it when running thousands of miles on John Walford Road, a truly magical and marvelous place.

[00:31:54] Sadly, our road has been a street that has no name, according to the county in VDOT. This road and our community have been forgotten, ignored, marginalized, and lost in a bureaucratic abyss. I'm talking about the westernmost portion of John Walford Road that is west of 287.

[00:32:11] It's only a 0.7-mile section of road. This road is the single-access point for more than 30 families. There is no alternative route when the road is damaged, and it is very badly damaged. And it has been for far, far too long.

[00:32:26] The road is unsafe and hazardous. has caused damage to multiple vehicles as well as physical injuries. This semi-destroyed road is destroying our quality of life. Our residents and children deserve a place a road on proper and safe road on which to walk run play and drive. This project is long overdue because it has actually been on prior VDOT schedules to repave but it was inexplicably removed and no one knows why and it is time to right that wrong. Furthermore, we ask that you pave the entire section, including an absurd and treacherous 50-odd portion of dirt and gravel in between two

[00:33:04] already paved sections. We call this patch Frankenroad. It has potholes that reemerge every two or three months, forcing VDOT to regrade and remill three or four times a year. Inefficient, ineffective, illogical, and a terrible waste of your valuable time and resources. The County and state need to collaborate on this ridiculous, tiny section and just pave it.

[00:33:29] Just to be clear, this is not for your six-year plan. This is, Supervisor Kirshner, for your this-year plan. We are not a street with no name. We are John Walford Road. We matter, and we need your help. Thank you. Thank you.

[00:33:44] And now I have to go get Joshua Tree. I have a point of inquiry. Excuse me, Chair Randall. Yes. I have a point of inquiry. For the many other families that I'm speaking on behalf of tonight, May I kindly present and submit a very large batch of supporting petition letters they have signed. This represents Supervisor Kirshner, a majority of families on John Woodford.

[00:34:01] Mr. Graham, you can actually give them to the clerk. I will do that, and I thank you for your consideration. Thank you, sir. Terry Hall, followed by Jeff Fanning, followed by James May. Good evening.

[00:34:18] Hi, my name is Terry Hall. My husband is Jeff Fanning, and he's not going to make it tonight. Okay. Maybe I can have 30 seconds of his time. You can't, but welcome. I'll just say, before we begin, I would like to thank the members of the board for your service to Loudoun County and for the time and effort you take to dedicate to addressing the needs of our community.

[00:34:39] I really appreciate it. But I am here tonight to ask for your help in hard surfacing Telegraph Springs Road. My name is Terry Hall. I live on Telegraph Springs Road. I've lived there for eight years, and I'm here tonight to ask for your support in that. I've lived on this road for eight years, and during that time, it's been a constant source of safety concerns, vehicle damage, and quality of life issues for the residents.

[00:35:00] And despite the regular maintenance and grading, the road quickly deteriorates into potholes and washboarding and loose gravel. So one of the most dangerous locations is the sharp curve that's, like, directly in front of my house. I don't know if you guys can see this, but it's about the, on the way here, this was about twice this size.

[00:35:19] So these are accidents that have occurred directly in front of my house. And so sometimes I've witnessed at least one serious accident or roadway departure at that curve nearly every year, and

sometimes more than one in a single year.

[00:35:35] I provided photographs of this to the board in the past, and I have these with me this evening. Maybe you guys would like to take a look at that. In multiple cases, vehicles lost traction on the loose gravel and slid off the roadway. And they strike fences and roll over in an attempt to navigate this curve.

[00:35:54] One accident involved four teenagers. And while we've been fortunate to avoid a fatality so far, the residents are hoping we can take action before we experience such a loss. Traffic on Telegraph Springs Road, to answer your question about, I love being on a gravel road, but the traffic has just increased substantially.

[00:36:13] Delivery trucks, service trucks, contractors, commuters use the road every single day. And at the same time, the dust generated by this traffic has really become unbearable for some of the residents. Homes and vehicles and porches and outdoor living spaces are constantly coated in dust, and that's gotten tremendously worse than the past several years.

[00:36:31] I don't know if it's a different formula or what. Ms. Hall? Yes. I'm sorry, your time is up. But if you have any other comments, you can either e-mail to them. I've e-mailed all of you guys. You should have that. We have that. Okay. And I will ask staff to make copies of that, which she just handed you, sure everyone has copies in our box as well thank you ma'am i appreciate it thank you all right um and mr fanning is not here so we'll go with james may and katherine croft james oh he's on the evening uh chair randall and members of the commission and vdot staff don't take offense

[00:37:09] i've been on telegraph springs road here in percival virginia since 2012 obviously from the the speed at which I'm going to talk. I'm from New England originally. However, I did move on to a dirt road, Ms. Randall, and you're absolutely spot on. You don't invite yourself into an area and then say, well, change it. However, since 2012, the traffic on Telegraph Springs Road is insanely busy. It doesn't travel at the 25 mile an hour that is posted. Everyone travels 60 or better it's they fly on it i've invited the sheriff to come down and take a look and it's it's just

[00:37:46] it's absolutely crazy how fast they drive on this dirt road the dust from it comes up not just the 12 feet onto the you know before the fence it goes comes up into the yard and everything i have gets coated in absolute dust that's not the problem the problem is exactly what miss hall said it's potholes they don't have one or two potholes you'd expect that on a dirt road What we have is we have potholes that multiply across the beginning of the paved area, and then at the curve she's talking about, I know exactly where she is.

[00:38:20] There's a dip that's filled with water all the time, and then the other part, when you try to avoid the water because you don't know what's there, is all potholes. And it is a hairpin turn that comes pretty fast, and they go flying through there. Telegraph Springs Road is primarily paved, but the pot that's not between the Snickersville Turnpike and Greggsville Road definitely needs to be paved.

[00:38:43] If not, either maintain the road as it should be without the potholes and don't cancel my tickets when I open tickets, and then you cancel them without doing any work, and then two days later you grade it and you take the oil spreader so it doesn't have dust the day before the meeting.

[00:39:03] I saw that, and I noticed that my ticket was canceled. I apologize for going over, but like I say, it's really bad on Telegraph Springs Road. They need to do something. Either maintain it or— Thank you, Mr. May.

[00:39:20] Thank you. Thank you very much. We hear you. We hear you all. Catherine Croft. Hi there. Good evening. My name is Catherine Croft. I'm a resident on Telegraph Street Road in the Lamont.

[00:39:37] First of all, we're grateful for VDOT's dust mitigation efforts on our road. They come out when I ask almost every single time, but the spray lasts only a day. And my entire property is covered in gravel dust every single day of the year. My garden, my porch, my children's play area everywhere.

[00:39:56] We have direct road frontage with no protection. I grew up in rural areas when I was younger, but obviously didn't realize the impact that this dust would have on me as an adult. I now have reactive airway disease and have been hospitalized recently due to allergic asthma.

[00:40:13] My son is now developing allergic asthma as well. This is a medical crisis for our family. It's not a quality of life complaint. We love this community deeply. We're committed to its preservation and history. I'm a former board member of the Middleburg Museum. But unfortunately, I have to ask that we not continue to put our own health at risk.

[00:40:32] I'm asking the board to include Telegraph Springs Road in the SSYP for hard surfacing in the exact areas that my neighbors were speaking about. And if a full road improvement is not possible on Telegraph Springs, I please ask that at a minimum our frontage from Stone Meadow Lane North through my address at Telegraph Springs Road be considered as a discrete targeted segment.

[00:40:57] Thank you for your time and your service to this community, everyone. Thank you, ma'am. I appreciate it. Give me one second. I'm just taking notes. Did she say Stone Meadow Springs North? Is that what she said? North? Okay. All right.

[00:41:13] Thank you. Thank you. Mr. Kirshner, do you have a motion? I do, Madam Chair. I'm going to make a motion just before I make it. I'm going to make a motion, the packet motion, and then add a further move to that, as we discussed. Is it what we have in front of us?

[00:41:29] No, Madam Chair. I just sent it to you. It's very simple. Guys. I know. It's very simple. And I'll explain after I make the motion. Calm yourself. It's okay. It's very simple. You'll understand once I make the motion.

[00:41:47] Unless you would like a point of clarification prior to me making the motion, Madam Chair. So what I like is for you all to send the motions before 12 noon so that we can all see them and take them in. That's what I like. You did send the motion before 12 noon. How different is the motion you want to say to the motion that's in front of us?

[00:42:08] So I'm going to make the motion to send it to July business meeting so we accept the funds, and I'm going to further move and ask staff to bring this item back upon completion of the criteria for consideration of roads. Make the motion. Thank you, Madam Chair. I move the Board of Supervisors forward to FY 2027 to FY 2032, Secondary Road, six-year plan to the July 7, 2026 Board of Supervisors business meeting for action.

[00:42:33] I further move that staff bring this item back to the Board of Supervisors to, I guess it would be to a future public hearing. This public hearing should be sufficient, I mean, unless there's some...

[00:42:50] To a future business meeting? It would be a board meeting. To a future, back to a future Board of Supervisors business meeting to consider roads for future funding under the Secondary Road Program following completion of the proposed criteria for paving or maintenance. Thank you.

[00:43:07] Madam Chair, may I ask, is there any idea what meeting you would like to bring that back to? Could it be a September meeting? Why don't we make it an October meeting? I'm pretty sure he was asking Madam Chair that question because I said that. I'd like to be Madam Chair today. Can you be Madam Chair?

[00:43:25] Really, Mr. Kirshner? It's hard to, I would prefer it be like the second meeting in September. Yeah. That's fine.

[00:43:41] Madam Chair. Yes. We may not have the criteria by then. You may not have the criteria by then. The way I understood Supervisor Kirshner's motion was for the staff to complete the work on the criteria. When do you think you have the criteria? We'd prefer to finish the criteria and then bring it to a board meeting.

[00:43:59] Okay, so then it's a meeting to be determined based on when the criteria is going to come? Correct, and then what we would do is bring the criteria, and if we had projects pursuant the criteria, then that would be sent to public hearing as part of that item. Okay, and that would come straight to a business meeting?

[00:44:18] Yes. Okay, Mr. Kerser? That's my understanding as well. That's the motion? All right. So it would be the motion I made, correct? Yes. Okay, thank you. So you can start my time now. Thank you, everyone who came out and spoke.

[00:44:34] I have been chomping at the bit, to use a hoarse term, to get this moving. I know a lot of people have been working on it, but oftentimes with government, sometimes it's a slow process to get to where we are.

[00:44:51] We have been waiting for some guidance. We have finally received that guidance. So I anticipate we have most of our from the state. So I anticipate we have most of our, what we need to really establish as a county, what criteria we will use when deciding whether or not to put a road into the secondary road program and actually have hard surfaces and whether we will not.

[00:45:19] I'm very hopeful as part of this process that we will also provide guidance on the best methods, ways, and processes, and maybe even funding that we will need to properly keep up the roads, our 250 plus miles of road in the county, in a proper way to actually service the residents and the citizens of this great county. And for those, many who have moved out because they want to be on these gravel roads, they ride their horses, they walk, it does have a slowing effect for traffic. There's a lot of reasons that people have chosen to live on these roads.

[00:45:57] But with that said, I also understand there's significant dangers in some of the failure of maintenance or just the way roads are designed, improper drainage, et cetera. And I'm hoping that this criteria will help to target those areas that are problem areas, hard surface those limited areas we're hoping, and then have proper maintenance in the areas that need it.

[00:46:22] So thank you for my colleagues for supporting this. This is kind of an ongoing difficult thing because, I mean, I will tell you I've been in other parts of the country where our gravel roads, where their gravel roads seem to be maintained far better than the ones I have seen.

[00:46:38] And I think that maybe we just need to do a little better job maintaining it or using some of the money that we have to make those necessary improvements for drainage, et cetera, in these very difficult

areas or in those difficult areas perhaps spend the extra money that we need, such as Supervisor Turner was mentioning for places like we did on Old Waterford Road, which actually has held up significantly, although significantly expensive.

[00:47:03] So thank you. This is a long process. This is about accepting the money. That's why I'm sending it to the July business meeting. We'll accept the money, and then we've now instructed staff to bring this back once we have a criteria adopted. And thank you to Supervisor Tacroni, VDOT, the Rural Road Committee for all the hard work that they have done, and my staff specifically have done yeoman's work trying to get this established.

[00:47:28] So thank you. Thank you. Mr. Croni? Thank you, Chair Randall. And, yeah, I want to thank staff and VDOT for looking at new solutions. I know the Virginia Transportation Research Council is the one, you know, kind of looking at new ideas, new materials, new solutions.

[00:47:49] And I agree with my colleague in the Catoctin District that, you know, we're at a point where we need to do improved maintenance. Our roads are in need in the Little River District, and I know in the Catoctin District, of more attention, more maintenance.

[00:48:13] We get complaints on two or three roads all the time, and we send them to VDOT, and you have to go out and do those small repairs. But it'll be good if we can come up with new solutions. So I look forward to the criteria and some of the research and data-driven methodology that you come back to us with.

[00:48:37] And that way we can take care of our historic road network. And I'm with Chair Randall. There are some really unique historic roads that we have to care for and maintain as gravel and make sure they're safe for the community.

[00:48:55] So thank you. So, Ms. Hall, you said something that I really hadn't thought of, to be quite honest, because, you know, when you move to a gravel road, you move to a gravel road, but you also know the traffic is there when you move in.

[00:49:15] And if the traffic has significantly increased in the time you're there for whatever reasons, it almost doesn't matter what reasons, I guess that does change the nature of the road itself because there are more people driving on it, which would kick up more dirt and dust, which would degrade the road faster.

[00:49:36] And so that is one piece I hadn't thought of. I had just thought you move there, you know what, that's it. But if you move there and the conditions of the road changes because of who's on the road, that's a different discussion. And Mr. Graham, I heard that from you as well.

[00:49:53] And, you know, I think that for all the ways we love having GPS and Waze and, you know, MapQuest, they sometimes will send you through, the GPS will send you through the easiest route. And sometimes the easiest route with the least traffic is an off and gravel road that probably a truck doesn't belong on or all that traffic doesn't belong on.

[00:50:16] And then because of that, it changes the whole nature of that road and changes your experience living there. I actually had not thought about that. So for all the speakers that came to speak tonight on this issue, I really do appreciate it because it did give me a different perspective.

[00:50:32] So thank you all very much. Mr. Kirschman, would you like a closing? Just very briefly, I do wanted to address the- Oh, I'm sorry, Ms. Kirschman, before you have a closing, colleagues, there are times things are going to come up because they just are, we're when we're having discussions things you haven't thought of however it is very tough for me to make call balls and strikes and not just say completely if you do not have this in front of us by 12 no one gets to speak that one was very minor so it was easier versus my colleague the everyday was much harder but it would be i it's it's hard for me to run a meeting and then look

[00:51:11] at a motion that's put in front of me or hear a motion for the first time so i'm going to one more time, just please try to get motions that are going to be different to us by noon. I also don't know if they've been vetted by staff, by legal. If they're coming in the middle of the meeting, I have no idea if legal has seen these or if legal hasn't seen these. And so, you know, I don't mean to sound like a school marm or sound just like an unpleasant human being, but it is just so much easier if I could see motions much, much earlier in the day. I would just really appreciate that. So

[00:51:48] if we can keep that in mind, I'd appreciate it. Mr. Kirshner, you want to close? Yes, just very briefly, for those who came out and spoke about the specific problems on your roads, I do hear what you're having to say. And I have a list of roads that are very, it is very long that we have gotten calls on. John Wolford and Telegraph Springs and the ditch at Wheatland happen to be at the very top that need attention um and since i have vdot here i would ask we're going to send you a list of eight roads that probably get the highest complaints on that we're asking that you as a board to give the highest attention in the meantime until we figure out how to best

[00:52:26] deal with the problems that are arising those roads so um i'll just give them to you now limestone school road gloucester road canby road hughesville road perseville road monetressor road bald hill Road and Quarter Branch Road, along with Telegraph Springs, Wolford, and the Ditch on Old Wheatland. Thank you. Mr. Kirsten made the motion. Mr. Crony seconded the motion. I'll be able to say aye. Aye. Any opposed? That motion will pass 801. Mr. Letourneau is out tonight because he does not feel well.

[00:52:56] Thank you very much, staff. We appreciate it. Okay, we're going to go on and go to happy pause. I will say, I have been on this dais now for a glorious, wonderful, fun, interesting 11 years this is the first time that people came on all in white i've seen every other color before it was the first time they came all in white you look fabulous you really do so good job all right would staff please come to the table for the happy balls madam chair yes could could you adjourn the joint public oh i do i'm sorry i adjourned the the i adjourned the vdot um i

[00:53:34] I adjourn the VDOT public hearing. Thank you. And the joint public hearing. And then I will open the public hearing. Thank you. Well, hello.

[00:53:51] Hello, hello. Good evening, Madam Chair. Good evening. I am standing in for Dan Galindo this evening. Thank you. We welcome you in the boardroom, sir. I'm fourth in line to the throne of DPZ.

[00:54:14] We do a good job, and, you know, we'll see how it goes next time. Do it your job, kid. All right, we're ready when you are. Good evening. My name is Diana Inthevon-Connors with the Department of Planning and Zoning, here to present LEGIE 2024-0012, Happy Paws K-9.

[00:54:36] The subject property is a three-acre parcel in the rural north place type in the AR1 zoning district. The property is currently developed with a single-family dwelling. The application is requesting a special exception to permit a dog kennel within the residential dwelling for up to 25 dogs and a minor special exception to reduce the 100-foot use setback from three property lines. The dog kennel is currently operating out of the residential dwelling, and the application before you this evening is to bring the kennel into compliance with the zoning ordinance. The kennel proposes operating seven days a week, offering daycare

[00:55:15] and overnight boarding services. The kennel includes two components, an interior space co-located within the existing 3,318-square-foot home on the property, which is shown on the screen in orange and a 21,105 square foot outdoor play area at the rear of the property which is shown on the screen in pink. There is an existing six foot tall wood fence that encloses the rear yard and sits on the property line which is outlined in red. The application proposes an additional four foot tall secondary fence outlined in dark blue to protect the existing vegetation on

[00:55:49] the property which will be preserved as tree conservation area. Staff has identified one outstanding issue and one issue for consideration. There are elements of this application that are in conflict with the Planning Commission's conditions on which they base their support of the application. Discrepancies with the conditions pertain to the maximum permitted amount of dogs, reduced setback, specifically from the eastern property line, which is the rear yard, the appropriate number of employees to support this use, and the maximum amount of dogs permitted

[00:56:25] in the outdoor play area at a given time. The applicant is requesting a higher amount of dogs operating at a reduced setback where the kennel outdoor pen would be closer to the neighboring residential property located at the rear. In addition, the applicant is requesting fewer employees despite proposing more dogs, as well as a minor change to how many dogs are permitted within each area of the outdoor play area. Staff seeks guidance and clarification from the board to resolve the discrepancies with the conditions. Staff raises the proposed scale and intensity as

[00:57:01] an issue for consideration due to the proximity to surrounding residential uses. If the board wishes to permit an alternative number of dogs then conditioned by the commission, staff seeks guidance from the board on the appropriate number of dogs for a kennel in this location relative to its proximity to adjacent residential uses and operating at a reduced setback.

[00:57:21] For context, here is the approximate distances of the proposed kennel use from the neighboring residential properties. The closest neighbor to the kennel is the residential property to the rear, which is shown on the right of the screen. As proposed by the applicant, they're proposing a 45-foot setback from the eastern property line, that rear property line.

[00:57:45] So the kennel would be operating as close as 89 feet away from this residential property when measuring from the outer edge of the outdoor kennel pen. Here's a slide of the proposed reduced setback. The zoning ordinance calls for kennel uses to demonstrate an 100-foot setback from all property lines, and as mentioned earlier, the application proposes a minor special exception to modify the use-specific setback on three sides of the property. The application proposes the setback be modified down to 40 at the north, which is shown in green, and to 75 at the south,

[00:58:21] which is shown in light blue. These are consistent with the conditions from the Planning Commission. However, the conflict is at the rear yard, where the application proposes the setback of 45,

which is less than what was recommended by the Planning Commission. Staff recommends conditions of approval pertaining to the operation and handling of the proposed kennel. In addition, staff recommends conditions to assist with mitigating potential environmental concerns associated with the kennel. Staff notes that the Planning Commission recommended a condition for annual soil testing. However, staff does not recommend the board carry this condition forward

[00:59:00] in its current form. However, if the board wishes to support this condition, then staff would need additional time to continue to refine this condition. Other conditions of note include conditions to prohibit commercial breeding and a residency requirement for the kennel operator. Staff could support board approval subject to the conditions as recommended by the commission.

[00:59:23] Should the board decide to consider alternatives to the conditions as recommended by the planning commission, the conditions would need to be revised prior to board action. At this time, I'm happy to answer any questions that the board may have. Thank you. I need to point up information before I go because it may guide other questions. Mr. Rogers, because this is your district, right, Mr. Crony? Yeah. Mr. Rogers, if the applicant was granted and that's just an if, what they're asking for, would that be specific to this property or would it have to apply to

[01:00:02] anybody and any other applications that would come like this. So does this set a precedent? It does not set a precedent. It's applicable just to this property and all future owners of this property. What I should say is that it can be used as an example for others. It is not a precedent. It is up for this board to decide how it's to grant special exceptions. Okay. Thank you. Mr. Crony, this is your district. Yeah, thank you, Chair Randall, and thank you for that presentation. So it was a close five to four vote at the planning commission to approve based on

[01:00:39] the conditions the planning commissioners recommended. What were the reasons some of the planning commissioners opposed? Do you know? Yes. So the discussion was largely based around the location of the kennel within the surrounding neighborhood, taking into account the residential neighbors, the public comment. There were concerns that the kennel use is co-located within the residential home. So that was a topic of concern, as well as potential health impacts, along with

[01:01:15] noise and odor. Okay. And do we have any other example of a co-located kennel in a residential home? Is there another actively operating example? Yes. So there is one example in Round Hill, Happy Hounds Lodge. They received a special exception approval in 2015. Okay. And how many dogs do they have? They were approved for 30 dogs on 16.45 acres. 16.4 acres. Okay. And 30 dogs.

[01:01:50] okay and did they meet the setbacks yes okay met setbacks okay um so uh let's go back to the the setbacks actually 89 feet you mentioned but what is it from the property line do you know on the to that rear property from the property line 44 feet 44 feet okay um And I understand the soil testing would be difficult.

[01:02:22] I mean, I have three dogs. I don't know how you would do soil testing. Do you think the waste management program that's been put in place is meeting the needs of, you know, the odor and any contamination?

[01:02:40] Yes. So as I understand it, the applicant does remove solid waste from the property weekly, and they would be required to maintain this. But I believe the applicant can speak more to that on how they manage the waste.

[01:02:55] I believe there are other procedures that they also... And they're meeting, like, the standard, right, of what normally we would require at a kennel regarding waste management, correct? Yes, yes. Okay, okay. And then the number of employees per dogs, what is the standard?

[01:03:14] Because I saw one to six seems really like a stringent standard. I mean, what is the normal standard? So in terms of standard from the zoning ordinance and our use-specific standards for kennels, we do not have a minimum of employees set within the zoning ordinance.

[01:03:33] I believe there are general industry standards that I'll allow the applicant to speak to. But we as the county do not have a set standard. Okay, thank you. Thank you, Ms. Bricksman. Thank you, Madam Chair. Do we need a motion to remove the soil testing requirement?

[01:03:50] That would just be if you were to move it forward or move it to approve. If you remove it to a future business meeting, if there's a consensus to remove it, the revised conditions would exclude it. So we don't need a motion to remove that? No, just if there is, I'm sorry. If you move it to a business meeting, we're asking for recommendations or feedback on a number of conditions.

[01:04:10] I want to remove that. I don't know. I mean, if you were looking for consensus, I think that we should not have them do that. And by the way, in the item, it says they remove the waste twice a week from the property. Ms. Crony asked, why do they need two fences? I mean, to me, there's a really tall fence.

[01:04:28] I was out there. There's a really tall fence along the property line. And then why would they need a four-foot fence? So the applicant is proposing the four-foot-tall secondary fence because they are proposing to retain the existing vegetation on the property. So those large mature trees as tree conservation area.

[01:04:44] and you cannot have the use in the TCA. And why would we have a 75-foot setback against old Oak Bucket Road? I mean, that's against a road, so I guess I don't understand why we would need 75 feet there, but then maybe we're doing 45 feet against the house behind them.

[01:05:01] I would have that reduced. That's fair. So the applicant proposed the 75-foot setback from Oak Bucket. They're okay with that. Okay, all right. Mr. Crony asked where the ratio came from. Um, just for FYI, I researched, I used to work at a day school and I did, I checked ratio for preschoolers and it's one to eight. So, I mean, the one to six ratio I think is, um, a little bit too strict. Um, and I, I like the idea of what the, what the owner wants to do, which is two for 15, two employees for 15 dogs. Um, I think that's reasonable. Um, are you aware of how many trees

[01:05:38] that would need to be cut down if they were to do the setbacks as requested? Because it seems to me that if it seems to conflict with the tree conservation area requirement because if they have to bring those setbacks so far in on the property they have to cut down a bunch of trees so is that not a conflict um i'm not aware of how many trees they would need to okay they have to cut down a lot of trees i mean they have them ribboned on their property so again that's another reason why i would allow them to have the reduced setbacks um then um we talked about restricting

[01:06:15] dogs another thank you supervisor crony i thought that was a great question i had the same question um do you know what square footage they they have now versus the square footage on the property they will have if they are required to do these um setbacks that the planning commission proposed in other words how much space are they losing for the number of dogs that they wish to have

take advantage of their business and by the way i think that the number of dogs should be exclusive of the homeowners dogs so i'm sure the applicant can make the comparison uh we do have the statistics

[01:06:52] of what it is currently or what is proposed currently which is i think 13 000 maybe so in the applicant's presentation i'm sure they'll have the comparison okay thank you mr i mean mr saints thank you madam chair um for the other home based kennel that you mentioned that has been approved in the past you said there was how many dogs they were approved for 30 and how many acres? 16.45. And how many acres is this? This is a three acre parcel. And they're asking for how

[01:07:24] many? They are asking for 25. Three acres, 25 dogs, 16 acres, 30 dogs. Yes. Interesting. That doesn't even add up. So is home-based kennel an actual category in our ordinance? The use in our zoning ordinance is kennel. So just kennel in general, but not home-based because correct me from wrong this is an actual residence that has two parents two children living in it with their

[01:08:01] four dogs and then adding on top of that the dogs that they watch or whatever in the in the actual home and the kennels are not outside in the basement or in the garage but in the actual residency in the living room in the rooms etc is that correct that is correct okay mr sayings the ordinance allows single-family residential they allow kennels there's no prohibition of them occupying the same space okay all right and then how many employees does this other home-based kennel have that has the 30 dogs and 16 acres do you know it by any chance um i do not have that

[01:08:40] information in front of me but i'm happy to do some research prior to this meeting if we could do that please and then go to the slide that shows the aerial of the the property okay so winter working this where is the fence in this in this picture here is it here along this white line or is it further up here the fence on the property line is right here that's where the existing fence is no no okay where's the so if this home is at the back of it correct no where's

[01:09:19] the property this is the property this is the property okay so the fence is here along here correct yes it sits on the property line and they're asking to do a setback to root to come closer to this home here no no so they are proposing that they would move the setback it'd be away from the property line further okay further in yes okay and this smaller fence is that inside of the bigger six foot fence yes currently right now okay and and if we were to do waste management how would that be done who manages that would that be county run or the the residents

[01:09:56] so the applicant is conditioned to remove waste i believe twice a week and they on their i mean the water testing how would the water testing be done the soil testing right now the the it will be on the applicant to coordinate a soil scientist to test the soils and come up with a remediation plan if it's determined to have a high level of acidity or other alkalinity or other issues associated with urine okay thank you mr kirschner thank you madam chair um so if i recall we had a we had an application come in

[01:10:30] last year, earlier this year, Silicate Springs or wherever it was, was that the one, that's not the one you're referring to, you were referring to one from 2015. How is this different than the one we just recently approved? So the most recent kennel application that the board saw was dog home away from home, I believe that's the one you're referring to.

[01:10:50] So this is a similar operation, doggy, daycare, and boarding. That parcel was a little bit larger, 4.85 acres, and they were approved for 15 dogs. So that was 15 dogs on 4.5. Can you, and I'm not asking you

to reach, my recollection, I went out and looked at that one, I have not, my staff's been out to this location, I have not.

[01:11:11] In that situation, they had a separate garage that had converted, I don't know if you worked on that or not, but you're shaking your head like you may know a little bit about it. They converted kind of into the kennel space. My understanding in this situation, they do maybe have some outdoor facilities, but also the house itself has some of the facilities that kennel the dogs.

[01:11:33] Is that a fair assessment? There is no accessory building for this property in the same that there was for Dog Home Away From Home. Dog Home Away From Home had a barn on the property that they converted into the kennel.

[01:11:50] The interior kennel space for this application would be entirely within, co-located within the residential home. Okay. So that brings me up to my, that brings me to the kind of the main question. What are the, so are there not any restrictions in the zoning ordinance for home-based businesses like this and the number of employees and whatnot, or is this purely a minor or a special, wait, is it a minor or specs?

[01:12:16] It's a specs that any home with certain criteria can request to have a kennel, or are there other criteria as to what you can and can't do in terms of your home-based home? Because this is a residential area, right? I understand they're larger lots, but, I mean, if I have a home on an acre in Ashburn, what prevents me from, I guess that's not rural policy area, but what if I have a home on an acre in the AR area and I want to create a kennel?

[01:12:46] Do I go through the same process or are there certain restrictions in terms of home-based businesses? So the restrictions that would apply to this property would be through the use-specific standards for a kennel use specifically. So this would not be a home business use. It would have to follow the kennel use-specific standards. And there are no, currently in the zoning ordinance, there are no use-specific standards that indicate the minimum number of employees.

[01:13:09] That's why it's a minor specs. It has to go through that process. It is a full special exception. Full special exception, right. Yes. Okay. Supervisor Christian, if I could also add to the other example you referred to, they did meet the 100-foot setback on all sides. Okay. Great. Thank you. Thank you.

[01:13:25] Mr. Turner. Thank you. Thank you, Madam Chair. Has Animal Services been out to inspect this site? Yes. So, Animal Services responds to complaints and concerns regarding animal safety and animal welfare.

[01:13:43] So, when there are complaints or concerns, Animal Services responds. They have received concerns, and they did conduct two site visits to this property. Both claims were unfounded, and no further investigation was warranted. How, and my understanding is for an extended period of time, they've been in violation of the zoning.

[01:14:05] Is that correct? Yes. So, I believe they were notified that they needed a special exception for this use in 2023. And so, following receiving that notice, the applicant began pursuing the remedy for the zoning violation, which is the special exception process.

[01:14:27] And they've been in pursuit ever since. How long were they in operation before they received the first notice? I believe that this business has been in an operation since 2021, but I'll defer to the applicant, too. Okay. And the first notice came what time? When was it 8?

[01:14:42] I believe they were notified in 2023. So they were notified they were in violation three years ago, two and a half years ago. Yes. Is that a normal length of time for this process? Because that seems two and a half years when you've been notified of a violation to get a special exception.

[01:15:05] Now we're at a public hearing, two and a half years later seems excessive to me. Correct. Just a quick timeline. November 2023 is when the property owner has been forwarded to the violation. Their application was accepted for review on May 20, 2024 is when it was officially accepted and under review, and there was multiple reviews that went back and forth with the applicant.

[01:15:30] It's more than the average, but it's not uncommon to take this long and get through. All right. I think my other questions are going to be for the applicant. Thank you. Thank you. Mr. Turner asked my question about whether animal services have gone out. tell me about the road network um tell me about the the traffic going in and coming out of out of this area and does is the can the road network handle the capacity yes so um this is a paved road network um within the residential neighborhood um a traffic study was conducted at that time

[01:16:04] when the traffic study was conducted the applicant was proposing 40 dogs and so the traffic study anticipated a higher amount of traffic for the higher amount of dogs. At that time, it was anticipating about 80 trips. A day?

[01:16:20] A week? A day. A day. Yes. 80 trips a day. And the traffic study concluded that the road network could handle the proposed traffic. At what level? At 80 trips. I know, but I mean, was it a level A, level B, level C? Did we have that?

[01:16:36] Did we know how it was performing? How the road was performing with 80 trips a day? If you don't know, I can get it later. It was acceptable, but the actual rating, we can look it up for you. Yeah, because it's acceptable A and acceptable E are different acceptables, right? So if you could look that up for me, I'd appreciate it.

[01:16:52] I agree, Mr. Turner. We, the county, we should never take this long to get something like this done unless the applicant's just not cooperating, and I'm not hearing that. I am concerned that they were out of compliance for two years, over two years before they actually, but we should still try, But if somebody is found to be out of compliance, once they try to get into compliance, we want to try to move that along a little more quickly.

[01:17:18] I think the rest of my questions will be for the – tell me the amount of the acreage one more time. Three acres. And how many complaints have we received before November of 23, which put our antenna up?

[01:17:37] How many complaints were there, and were they all from, how many complaints and how many complaints, I don't want to call them complainers, how many complaints from how many sources? So in the staff report, there was not a formal complaint that we received, so that's the nuance to it.

[01:17:56] People can call and complain, but there was not an official complaint that was registered in the system. Do we know how many calls we received? On those? No, we'd have to look those up. We don't know how many. Before the special exception came in. Yeah. Do we know, have there been any complaints after? There have been a number of online comments after the application was received.

[01:18:16] So there were concerns before, and there have been concerns after as well. Before we get to the final vote, can you guys grab those numbers for me? Yes, ma'am. And can you tell me what the road is functioning at? Level of service to the road and the number of complaints, yes, ma'am.

[01:18:32] Thank you very much. I appreciate it. Good evening. How are you? You all have 10 minutes to present. You can stay sitting there. You can use the podium. But when you get to two minutes, I will stop your time at 10 minutes. We're ready when you are.

[01:18:49] Good evening, Chair Randall, members of the Board of Supervisors. My name is Anna Ritter. I'm a land use attorney with Walsh, Kaluchi, Lubalai, and Walsh, serving as applicant representative on the Happy Paws K-9 Special Exception application. With me tonight are the applicants, Marcel and Beatrice Utenberg.

[01:19:05] We also have members Aaron Swishelm with Walsh Kaluchi who's also here with us. We also have our civil engineer and environmental consultant present, we're happy to respond to your questions after the presentation. Diana gave a great overview of the property and its location. It's right at the intersection of Oatlands Chase Place and Oak Bucket Lane as you can see on your screen. This is about 10 minutes south of Leesburg. You can see Gleadsville Road away to the west and Evergreen Mill Road to the east. Marcel and Beatrice are seeking special exception approval to permit an in-home doggy daycare and boarding business at

[01:19:40] their home. They began their business in 2021 after a personal experience with boarding and did very tragically with the death of one of their dogs. The Utenberg secured all pertinent business licenses to begin the kennel, and since beginning their operations, they have been a finalist in Best of Loudoun for doggy daycares consistently. Following notification in late 2023 that a specs approval was required, they did promptly initiate the current application. They're also seeking a minor special exception request to modify the setbacks for the kennel use, and the goal with that is to accommodate the existing outdoor play area at the back of the property.

[01:20:17] We did receive a recommendation of approval from the Planning Commission, and we're seeking board feedback on five of those proposed conditions due to practical implementation and enforceability concerns. So you're looking at an overview of the property and its neighbors. The two neighbors who share a property line with the applicants have been supportive of this application throughout the process and have provided letters of support, which I believe are available on the landmark portal. The property is outlined in blue and the green shading represents the vegetative buffers as required by the zoning ordinance. The outdoor play area with

[01:20:51] the proposed modified setbacks is shown in bright green outline. There is no modified setback proposed for the front of the property. You can see the full 100 foot use setback there shown in yellow on your screen. You also can't see it but there is a six foot tall wood panel fence along the perimeter of the back of the property. The outdoor player currently operates to the perimeter.

[01:21:15] A typical day at Happy Paws begins with client drop-offs, which are staggered from approximately 6 a.m. to 10 a.m. Pickups are staggered from about 4 p.m. to 9 p.m. Staggering in this way significantly minimizes queuing and traffic concerns. The zoning ordinance requires six parking spaces for the use, and as you can see, the applicants have paved their existing driveway to accommodate this. You can also see a portion of that six-foot-tall wood panel fence there at the top of the driveway. After

drop-off, dogs pass into the check-in enclosure, which you can see here on your screen. This provides a secure, controlled transition area, and Happy Paws has

[01:21:53] also developed a very rigorous intake evaluation policy that's mandatory for all new potential clients. Potential clients meet with Beatrice Utenberg, who is an experienced dog trainer for a one-on-one behavioral evaluation. No aggressive, loud, or disruptive dogs are accepted to the doggy daycare and dogs are also evaluated for compatibility with existing clients dogs. Dogs rotate through the outdoor play enclosures and the inside space in the home in small groups that are put together based on personality and compatibility. Rotational management in this way is in accordance with best practices guidance for kennels. The outdoor play area is currently

[01:22:29] divided into three separate enclosures which provide physical and visual separation between the groups. You're now looking at the middle enclosure with that check-in facility. You can see the southernmost enclosure there at the back with the white arrow. In order to accommodate the 75-foot modified setback off that far property line, we are proposing to remove that southernmost enclosure. You're now looking at the main backyard enclosure. During the day, the dogs have two outdoor playtime windows. There is a morning window from 8 a.m. to 12 p.m., and then all dogs

[01:23:05] are inside for a break from 12 to 3. There is a second playtime window in the afternoon from 3 p.m. to 6 p.m. At that time, the boarding clients go outside and daycare clients begin their pickup. The applicant has agreed to a proposed condition of approval from the Planning Commission that would limit the number of dogs outside to 12 at one time. Caretakers provide constant supervision of the dogs, and all of these operations are proposed conditions of approval.

[01:23:35] The applicant is requesting an approval for a maximum capacity of 25 dogs. This is inclusive of personal pets on the property as currently proposed. Marcel and Beatrice designed Happy Paws infrastructure to support a maximum capacity of 40 dogs. In response to feedback from the Planning Commission, we have reduced that a number of times, and the current request is for 25.

[01:23:57] Even at 25 dogs, Happy Paws has one of the largest outdoor spaces per dog ratio in Loudoun County, and I am happy to speak more to that afterwards if the board has questions. We based the 25 max capacity number on the recommendation of community planning staff who recommended a maximum of 30 dogs.

[01:24:17] The zoning ordinance does not provide any guidance on numbers. We've worked with our community planning reviewer for the last two years. She has visited the site and seen how Marcel and Beatrice run the property. And our last referral following the reduction to 25 found no outstanding issues related to scale or intensity of the use.

[01:24:32] The planning commission's recommended max capacity of 16 dogs, this is on the record, was based on the maximum number of children under the age of 13 that a child day home can care for under the zoning ordinance. We would respectfully suggest that the infrastructure required to care for children and dogs is very different, and that perhaps a child's daycare is not the most instructive example for a kennel in a rural area. The applicants have also designed their home such that when dogs are outside, the 12 dogs they've agreed to, other dogs can be inside and groups

[01:25:07] rotated accordingly. And rotation in this way is in line with best practices. Another area we're seeking board feedback, and Diana went to this very well, is related to the modified setback along the

eastern back of the property, which is shown at the top of your screen. The use-specific standards for the kennel prescribe a 100-foot use setback, and the unmodified setback is along the front of the property there in dark green. The proposed modifications, we originally came in with a request to modify the setback down to zero in the back to accommodate the outdoor play area.

[01:25:43] In response to the Planning Commission, we have increased those setbacks to the current proposal. That's 40 feet on the north, which is the left side of your screen. This is in line with the Planning Commission's recommendation. 75 feet on the south, which is the right side of your screen.

[01:25:58] That is also in line with the Planning Commission's recommendation. And we've also proposed the 45-foot setback along the back of the property shown on the screen in bright green. The Planning Commission's recommendation for 60 feet is shown in red for contrast. 60 feet, our concern with the 60 foot setback is that this impacts a high traffic area of the play area and sort of counter to the goal of the setback increases the likelihood for disruptive behavior like barking. The approximate location of the 60 foot setback is shown in red and to illustrate the high traffic area, you can't see it with shade but the yellow

[01:26:36] circle is the entrance over to the check-in so you have dogs coming in and out of there and then the two yellow areas point to the entrances to the home that they rotate the dogs through. So this is one of the highest use areas. You can also see the gazebo and seating area there are excluded. Those can certainly be moved but that would further restrict the traffic area. The planning commission also recommended the minimum number of employees at a ratio of 1 to 6. Best practices for doggy daycares is a 1 to 10 to 1 to 15 ratio, caretaker to dog ratio. Happy Paws has always prioritized this as something important to the

[01:27:15] experience the dogs and clients receive, and they have agreed to the condition from staff, which at the proposed max capacity yields an approximately 1 to 8 ratio of employees to dogs. We've also asked that when outside, instead of dogs being divided 6 and 6 per outdoor enclosure, that caretakers retain discretion over division because a 50-50 split is not always the best way to manage dog behavior and can contribute to unwanted disruption like barking. Finally, the Planning Commission did recommend that annual soil testing condition that's been discussed a bit

[01:27:51] already. To our knowledge, this is a condition of first impression in Loudoun County. Happy Paws does have one of the largest outdoor square footage to dog ratios, and so we're a little bit concerned about enforceability issues. The identified nutrients in the condition also vary, can fluctuate widely based on factors outside of the kennel use, such as drought, rain, road salt treatment. We do have our environmental consultant here who can speak to that. And I'm happy to go into detail about the waste policy if that's helpful to the board as

[01:28:26] well. So with that, I'm going to stop the presentation. Thank you very much for your time and we appreciate your thoughts. Give back 20 seconds. By the way, I'm sorry you lost a dog. That's really hard. Okay, supervisors, if you have questions for the applicant, and again, this is Mr. Crony's district, so I would go to her first. Mr. Crony. Thank you, Chair Randall, and thank you for the presentation. Thank you for hosting me, Marcel. I got a chance to visit your establishment and saw how you operate, and you do operate, you know, you operate a pretty

[01:29:03] amazing daycare, so, for doggies. A question about the setbacks. So, I was intrigued with Supervisor Brisman's thought that maybe rather than reducing the southern setback, and, you know, you could maybe extend that since that has more space between a residential home.

[01:29:29] It has the 334 feet versus, you know, limiting the home that's 89 feet. In other words, if we could keep the setback at the 60 that the Planning Commission recommended and maybe look at modifying the one that is 75 feet.

[01:29:51] the southern setback. I don't know if you thought about that, because that one has more space between the homes. Sure. And Supervisor, can everybody hear me? I can't tell if the mic is working. It's working. Thank you. That's something that we're absolutely willing to speak with your office about. Okay. You know, I don't know that that was something that we specifically discussed prior to this meeting, simply because we were trying to bring our setbacks as most in line with what the zoning ordinance would normally prescribe as possible. But if that's something you would like us to consider, we are happy to look at that. Yeah, that way you could

[01:30:30] maintain, because that one home is really close, the 89 feet. And that way you could keep what the planning commission requested and then look at that southern border that gives you a little more to work with. Sure. That's something that we're, again, very happy to work with you on. And we're happy to reach out through your staff to make sure that we continue that conversation. And then if you could go through the waste management, just so I know, you mentioned that there was somebody who had the environmental background on the waste management. So I brought up this photo because

[01:31:07] you can see this is the main backyard play area and it has wood chips over the ground. That's an intentional aspect of the waste management policy. The caretakers are constantly supervising the dogs, and they pick up waste on the spot. And with that waste, they grab some of the wood chips that have been contaminated, and that provides a bit of a substrate barrier between the dog feces or excrement and the soil. Caretakers also do a full sweep across the property at the end of the day. No waste is flushed into the septic system. Waste is stored securely on site, and it's picked up by a private disposal company twice a week from the property.

[01:31:48] Okay. Thank you. I think I'm out of time. Thank you very much. Ms. Brooksman. Thank you, Madam Chair. Do you know how many, well, first of all, on the eastern setback, the home behind, those neighbors are supportive even with the zero setback? They would have been supportive?

[01:32:05] That is correct. Right. So those neighbors are going to be fine with the 45-foot setback if they were fine with the zero setback. Right? And that's the home that's 89 feet away. Can you go back to the waste management slide, please?

[01:32:23] So this, tell me if I'm saying this correctly, but if they were to have to do the 65, 65 or 60? 60. 60. It would literally make the fence go like right here. Yeah. It's about the location. This is approximate.

[01:32:39] This is my graphic design skills. So they would lose all this tree. They would lose all the shade. They would lose all of this that the dogs use. and i can't even imagine how hot this can get in the high traffic area so i i would strongly encourage board members to agree to allow them to at least do the 45 foot setback and yes there we go so they can have the space and at least some of the trees um when i was there uh and i we were downstairs and you said they're letting the dogs out it was like three o'clock and they were letting

[01:33:15] the dogs out how many dogs were you letting out at that point in time that day we had i'm sorry we had uh 23 dogs on that day and they all went out yes okay so that you could tour inside so so i can attest they all went out i heard nothing i heard no noise i went out on the screened-in porch which well you can

see where it says house i went out on the screened-in porch and i didn't even see them they were all out in the shade they were all over in the play area and there was no

[01:33:47] barking there was nothing i should save this for our motion um the um your you started to make investments because you was thought that you were going to be allowed 30 dogs can you tell us how much you've invested how much money have you invested in this since you thought the special exception might allow 30 dogs yes so we started operating in august 2021 and it was not until november 2023 that we were advised by the county just give me the number if you could just give me the number since the beginning we applied for 40 dogs and we have spent already over two hundred

[01:34:26] thousand dollars two hundred thousand dollars already two hundred and fifty thousand dollars in the infrastructure can you remain in the black with 16 dogs you've already had to let one employee go right yes okay my last question is have you received has your family received any threats over this? It's been a very stressful process over two and a half years. We don't understand why it took so long, but we have started receiving. We had no complaints until November 2023,

[01:35:02] and then all the complaints are condensed into 2025. So we are under a lot of stress. People are complaining not only to aspects related to the business, but to our personal life, our immigration status, our family. You know, it's been overwhelming and very difficult.

[01:35:23] Excuse me. These didn't come. Mr. Saenz. Thank you, Madam Chair. But first, you know, nobody should be attacking anybody or, you know, harassing folks and whatnot. So sorry to hear you and your family are going or have received nasty comments and threats.

[01:35:52] That's inappropriate, and that should definitely not happen and definitely should stop right away. As I've always said, if you've ever been in this boardroom before, you can always say treat others as you want somebody to treat you and your family, plain and simple. It's the easiest thing in the world to do, which we would all do that.

[01:36:09] All right, moving on. How many employees do you currently have now? It depends on the amount of dogs that we have, but we keep like one dog per, one caretaker per eight dogs. So depending on how many dogs we have on that day, I build the schedule accordingly.

[01:36:27] On average, how many? On average, we have three people on site to take care of 25 dogs to keep the ratio of. And how many dogs are you currently maintaining? Today we had 23. On average? Yes.

[01:36:43] Okay, and would you say, because I see the hours were listed, I think the pickup said 6 o'clock or something to that effect, is that correct? We are open from 6 a.m. to 6 p.m. And you can guarantee 100% that nobody comes to pick up the dog at 8, 30, 9, 30, 10 o'clock, 11 o'clock at night?

[01:36:59] It does happen, especially for first responders when they have their agendas, their schedule. They communicate with us ahead of time and we open a section for them, but we are closed for the public after 6 p.m. Okay, so we do have clients that show up past 6 p.m.?

[01:37:14] Correct. Okay. But we've agreed to our proposed condition of approval with the hours that you see in the conditions. Well, how can we maintain that if we're already operating past our set hours that are on the Google website? It's changing your policies.

[01:37:31] They would be required to maintain those conditions or be in violation of the conditions, Supervisor Saints. Okay. And what would be a reasonable time frame for your business? Would 8 o'clock

a.m. to 6 o'clock p.m. or 7 o'clock be more reasonable? I think maybe 7 o'clock.

[01:37:49] We prefer to close for the public for the very majority at 6, but if someone is stuck in traffic or there's an emergency, 7 p.m., I think it's a good compromise, yeah. Okay. And by the way, there's no dogs outside between 6 a.m. and 8 a.m.

[01:38:04] Whoever arrives is taking inside, so there's no dogs outside before 8 a.m. Okay. And then, you know, Mr. Crony, whisper something in my ear. everyone, you know, the president or Ms. Brichman's comments is, yeah, maybe the neighbor that's directly behind you, that's 89 feet, they're fine with the operation, but who's to say they might move and then a new neighbor comes in, they might not be happy with it being so close to the residents if there's new folks moving in. So I think we definitely need to take into consideration what she mentioned earlier. Okay. All right. Thank you. Mr. Kersey. So I have two questions,

[01:38:42] two kind of general questions. The first is, what does a typical morning or afternoon look like in terms of arrival and drop-offs? Is it usually within a two-hour period? And is it usually one dog per person as a general rule? So you've got 20-plus cars coming a day, or how does that kind of go down? Yes. So the morning drop-offs are staggered between 6 a.m. and 10 a.m., usually. And, uh, we communicate with the owners to understand what time they're coming so that we do a stagger and it's a kiss and drop. Nobody spends time there. They arrive, we already know

[01:39:19] they're coming. We deliver the dogs and they go. Okay. So you stagger over a four hour period of approximately 20 cars, give or take. Supervisor, the other thing that I would note is that not every dog is arriving and leaving on the same day. There are boarding clients. Um, they have the software that manages so they know how many dogs are arriving and leaving on that day. We can get you some printouts or, you know, show you. Yeah, but it sounds like you, oh, so you're saying some of them are overnight. Yes, correct. I understand. Okay. All right. Secondly, I know Supervisor Brisbane did mention that she didn't hear any barking when these dogs let out. I can

[01:39:58] guarantee you if I let a squirrel out, there'd be plenty of barking, but trust me. I have dogs myself. So how do you, how do you control the amount of noise? I mean, obviously it's got a lot of foliage that falls off in the winter. We have some houses close by. I'm kind of interested in hearing from what folks have to say, but to me, if I was the next door neighbor, that would be the thing that would be most, the traffic and whatever. But if this dog, if I've got a dog and I happen to be home during the day and it's barking a lot, that's going to try to drive me nuts. So What measures do you, I mean, my own dog drives me nuts.

[01:40:37] My wife, especially, who then, anyway, it's a whole vicious circle. But nonetheless, can you talk to me about what measure you take to help keep them from barking? Sure. So, differently from a traditional kennel or doggy daycare, that the dogs are under a lot of stress.

[01:40:57] Our dogs are never unattended. My wife is a dog trainer. Our caretakers, they engage with the dogs all day long. and we have a lot of toys and a lot of trees there. So dogs have no reason to be barking because they're playing, they're having fun. And as soon as a dog starts barking because they're never supervised, we take action on point.

[01:41:17] So verbally, then we use water spray to call their attention. If he insists or if the dog insists to bark, we just bring them inside and keep doing the rotation. So eventually there is barking, but it doesn't

last more than a few seconds because we address that on point.

[01:41:33] All right, so if I shoot my dog with a water pistol, he'll stop barking. Is that what I'm hearing? That works a lot. Because he's barking because he wants to come in. All right. One of the unique things I'll just add real briefly is that Beatrice is a trained dog trainer. And, Marcel, you've used this example before where you're taking care of your own kids, can be a handful, and yet an elementary school teacher can handle a classroom of 40 kids.

[01:41:57] And so I just share that example to, you know, a little bit of context for how well-equipped their staff is to take care of these dogs. You're certainly welcome to come to the site anytime. I know my staff said I have a minute to make it, but thank you. Yeah, understood. We've also agreed to a noise condition. So at Site Plan and Acoustical Noise and Engineer will have to come out and demonstrate with the dogs on the property at the requested capacity that they're meeting the 55 DBA at the property line.

[01:42:21] So that is a condition as well. Mr. Turner. Thank you, Madam Chair. So there's a three-hour morning play period and a three-hour afternoon play period? Eight to 12, and then three to six. Correct. Eight to 12 is a play period, and then three to six.

[01:42:39] Correct. And if it's a daycare, they don't go out for the three to six. You just wait for pickup if it's a daycare? So everybody comes out at three because they spend three hours inside taking a nap, you know, resting. So everybody comes out at three, I mean, 12 dogs, and we keep rotating.

[01:42:56] So around 4, 4.30, we bring the boarding dogs back inside because we start preparing the dinner for them. And the daycare dogs, they stay in the yard with the caretaker because it's time to check out. So they're not outside during playtime, they're in their cage. They have cages, and also we retrofitted the whole basement.

[01:43:15] We have a play area in the basement that they can spend time with. That's some pictures of our basement there. They do maintain enough kennel space so that if there's a requirement, like I think you guys feed in your kennels every day, Um, but for the most part, they're, they're with, they're not confined in the kennel spaces.

[01:43:32] Okay. Um, for the most part, they're not confined in the animal spaces. In, in the kennel. So you can see, yeah, in the formal kennels, there are enough. Let's just cut to the chase. How many average hours do they spend in their cage, in their kennel in a day?

[01:43:50] Well, during the break between 12 to three, not everybody's in a crate because every single room of our house is separated with baby gates. So some of them, they stay free in a certain room and also in the basement as well. So dogs, some owners, they do require their dogs to be crated because they're crate training.

[01:44:08] They don't want to lose that training. Some others say, hey, my dog cannot be crated because he's anxious, he's this or he's that. So we follow. Each dog is specific. Can I ask staff a question? Sure, yes. Staff, the nature of the complaints are from neighbors about barking and fences and screening, correct?

[01:44:32] Is that generally the nature of the complaints that you're getting? Yes. Have we received many complaints about mistreated dogs? Not, no. Okay. I will be perfectly honest with you.

[01:44:47] I was dead set against this application before I came tonight. You have persuaded me that it's a good operation. I'm actually very surprised. Sorry, I got you guys in trouble.

[01:49:01] And so I need to hear from people before I can make a declarative statement one way or the other. So that's what we're going to do now. We have a lot of speakers. I'm going to call your name three people in advance. when you come to speak please come to the podium closest to you you will have two minutes do me a favor and as you're speaking direct your comments to us like don't don't turn around speak to the audience one because you're here to talk to us but also when you turn around you're off mic and and you're not you're not caught on mic anymore and the comments should be appropriate and respectful and all those things and when you're finished i'm going to ask you to give up

[01:49:37] the podium to the next speaker. And so our first speaker, and I'll call you three in advance so that you know you're coming up next. Our first speaker is Jackie Murrow, followed by Melissa McQuinland, followed by Bryce Armstrong. Good evening, ma'am. Good evening. I based my comments on three minutes. I'm going to talk really fast. Thank you for the opportunity to speak. I'm speaking in favor of the requested special exception and ask you to approve it to allow Happy Paws to continue to operate their facility in the same manner as they currently do. A place

[01:50:12] like this is so badly needed in our area to keep our pups happy, healthy, entertained, and socialized. You will hear from others tonight about what an amazing place this is for all our pups. There is no disputing that. Finding good, trustworthy daycare and boarding facilities in our area has been challenging to say the least. When I found Happy Paws, I was ecstatic. A home-based business where my dogs could live, breathe, and stay with family 24 hours a day. They wouldn't be in a kennel as most boarding facilities are for the majority of the time with only small times out for walks and play. Happy Paws treats our dogs as family. They have amazing outdoor playtime, take needed breaks. They manage playgroups, peaceful environment. The dogs are supervised in all time, not put in a

[01:50:50] kennel with constant barking. I never have to worry when I'm out of town that my dogs are happy, healthy, and well taken care of. My two 75-pound dogs come home very, very happy. As to the number of allowable dogs, I ask you to give serious consideration to allowing Happy Paws to have their total of 25 dogs. In comparing this business to other kennels, there is no comparison.

[01:51:10] You will hear from neighbors about noise, odor, health, traffic, and safety. Hopefully, you've gone to the home, stood outside, and listened. You won't have heard more than a few small noises coming from the property, nor smelled anything unusual. This property is not like other kennels. Traditional kennels are loud.

[01:51:25] You know you're there once you get close. This is that kennel on the W&OT trail that I hear all the time. This home environment is quiet, and had you not known that the dogs were out there, you wouldn't even be able to tell. I dare say that this home-based business is quieter in the outside than a traditional home-based daycare business with children playing outside.

[01:51:44] Perhaps give a thought to what a traditional kennel is and for what this application is. A home-based dog facility. I know that making changes to the code doesn't come quick. I worked in local government for 38 years. I know it takes a long time, but just a thought that this is not a traditional kennel.

[01:52:02] My time is up. I'm sorry. Your time is up. Thank you so much. Thank you so much. I appreciate you. Melissa McQuillan, followed by Bryce Armstrong, followed by Kendall King. Good evening. Good evening, Chair Randall and the board. My name is Melissa McQuillan, and I'm a resident of Leesburg, and I'm here tonight to enthusiastically support the special permit for Happy Paws K9.

[01:52:23] I forgot the white shirt memo. I was going to say, what's happening over here? I forgot. I came from work. My dog, Brooklyn, was there today. She has been attending Happy Paws for almost three years. As many of us stated at the Planning Commission hearing, finding a home-based daycare like this is incredibly rare and valuable. Happy Paws provides a safe, structured, and family-like environment.

[01:52:42] The dogs have constant supervision, using industry standards of staffing to dog ratios, safe yard access, and when boarding, they sleep like they would just at home. My dog sleeps with a human when I board her there. They truly treat our dogs like family, and it's no surprise that they've been recognized as finalists at the best of Loudoun.

[01:53:00] At the last hearing, it was stated that there wasn't a precedent for such a daycare, and what an amazing opportunity to create one now. As a neighbor in the community, I deeply appreciate how responsibly Happy Paws operates. At the last hearing, many spoke about how they are model neighbors.

[01:53:15] They are incredibly mindful of noise, strictly limiting the number of dogs outside at any given time, and they proactively check in with their neighbors to ensure peace and quiet. In fact, in my three years of coming and going, the few times I've actually heard a dog barking during drop-off or pickup was coming from across the street, not the daycare.

[01:53:32] Their facility is also immaculately clean. Many members of the Planning Commission confirmed this firsthand. Some of you have been there as well. From a planning and zoning perspective, their impact on local traffic is negligible. In the three years, I've rarely seen more than one car there at a time. The staggered personalized nature of their business means there's no traffic congestion and disruption to the neighborhood.

[01:53:52] At the last hearing, a few people spoke about speeding and running of stop signs. In the past few months, I've paid close attention to this as I've come and gone, and only on two occasions have I witnessed a car not stopping at the stop sign of the corner and I watched the cars to see where they were going and they did not go to Happy Paws.

[01:54:08] The only speeding I've witnessed was a kid on an e-bike who was popping wheelies ahead of me and driving faster through the neighborhood than I was. If anything, Happy Paws customers are hyper-aware of the neighbors' concerns and take extra care to be respectful. Thank you. Yeah, the e-bike's a whole different thing, right, right now?

[01:54:27] Gracious. Bryce Armstrong, followed by Kendall King. Good evening, sir. Hey, good evening. My name is Bryce Armstrong. As I said, I live on Woodcock Court, just one street over from Happy Paws. For background, I have three kids, ages 12, 10, and 7, that stand at the bus stop adjacent to Happy Paws there at Oak Bucket and Oatlands.

[01:54:49] My kids are riding bikes in the neighborhood all the time. We're always out taking walks. My wife is out walking her own dog. The point is, my family is adjacent to the property and on the streets of the neighborhood all the time. And although we have a dog, I am not in business with Happy Paws.

[01:55:08] And even though to date we have not spent social time with Marcel and Beatrice, we certainly would like to in the future because they're wonderful people. My point is, is I have no personal interest in this matter. My concern as a combat veteran with nearly 30 years of military and federal service is finding and as a concerned community member is the truth.

[01:55:29] And so that the board can make an informed decision moving forward. Unfortunately, some of what you're going to hear this evening from a vocal minority is simply not true. And I believe the result of some folks' personal bias and interests. What you do hear in the neighborhood at times is from other neighborhood dogs.

[01:55:50] You don't hear anything from happy paws. What you smell at times in the neighborhood is a result of a landfill just south of the neighborhood, not happy paws. The speeding you see is the result of the neighborhood being a cut through between Evergreen Mill and Gleadsville Road.

[01:56:10] It's not because speeding as a result of Happy Paws. And so while standing at the bus stop, my kids riding bikes, walking in the neighborhood, my family has never seen any evidence of a business operating in a dangerous or threatening manner. It's actually quite the opposite.

[01:56:29] You don't even know that Happy Paws is there. And you would never guess that this type of business is operating from that home. What I have seen is a small business that is extremely well run and has bent over backwards to accommodate every concern that's been brought to their attention.

[01:56:47] Thank you. Thank you, sir. And thank you for your service. Kendall King, followed by Kathleen D. Horn. Good evening. Hello. My name is Kendall King.

[01:57:03] My dog, Luna, has been a part of Happy Paws K9 since May 2023. She attends daycare regularly while I work at a local hospital as an emergency room nurse. My hours are long and require me to have Luna at daycare from 6.30 to 7.45 to 8 p.m.

[01:57:21] Happy Paws is one of the only daycares in the area that allow me to drop her off and pick her up during those hours. This support is critical for me to serve as a nurse in the emergency room. This support is extended by Happy Paws K9 going the extra mile with service.

[01:57:38] When I was out of town one Christmas break, Luna was at daycare and started to feel sick. Beatrice took her to the vet and kept her away from other dogs to keep her calm and help her recover during that time. By supporting me as an emergency room nurse, Happy Paws K-9 supports the whole community.

[01:57:57] I don't know details of the dispute here, but I do know it is important for Happy Paws K-9 to remain available. Thank you. Thank you. Thank you very much. Jeff Huber, followed by Anna Childs. Good evening, sir.

[01:58:20] Good evening. I would like to share my personal experience with Happy Paws. Due to a change in drop-off hours at the previous doggy daycare, about six months ago, my wife and I began bringing our dog to Happy Paws.

[01:58:37] During the initial evaluation, we were immediately impressed by how clean and spacious the interior area was. as well as the well-maintained outdoor space that offered ample room for the dogs to play.

[01:58:56] Over the following months, we came to know Marcel and Beatrix, who have been open about the challenges they face as small business owners. To us, a dog is a member of the family, and the staff at Happy Paws has consistently treated our dog with that level of care.

[01:59:17] Each morning, she eagerly wags her tail when we arrive at Happy Paws. She's very anxious, and she is greeted warmly by a staff member. In the afternoon when we pick her up, she is tired and she is

hungry, which reflects a full day of healthy activity, which was not always the case at the previous establishment.

[01:59:45] Approximately six weeks ago, our dog was either bitten by a tick or stung by a bee while at happy pause. Beatrice promptly, promptly contacted me and asked permission to take her to the vet. She did so without hesitation, only requesting reimbursement for the vet bill, and in the days that followed, the staff monitored her recovery closely, making sure her wound maintained clean and that it would heal. And I see that I'm almost out of time,

[02:00:21] So, I'd like to thank you for allowing me to speak, and I hope that you would rule in favor of Happy Paws. Thank you, sir. Anna Childs, followed by Doris Yiping, followed by Jennifer Brin. Good evening.

[02:00:37] Oh, hello. So, my name is Anna. I'm a customer of three years. My family supports this business because of the service it provides and because of the way the owners have responded to community concerns.

[02:00:54] My dog is a rescue. Before she was rescued, she spent a year of her life in a crate, entire year. And today, having access to a safe environment where she can exercise and socialize, that has been transformative.

[02:01:12] Facilities like this are not easy to find. And for many of us who rescue dogs, they provide a service that benefits both animals and the community. But what has impressed me the most is the professionalism of the operation. I do not know how they do it. On paper, caring for so many dogs in one place should create significant challenges. Yet every time I visit, twice a week, every week for three years, I see a clean facility, a well-managed facility, well-cared for dogs and staff who are attentive

[02:01:48] and capable and competent. When concerns were raised about the traffic, the noise, environmental impacts the owners did not dismiss those concerns they participated in inspections studies they addressed the issues that were identified and they consistently striving for compliance with the requirements that are established so to me that is how the process should work community concerns should be heard should be investigated and addressed and in this

[02:02:23] case they are. This is a unique facility. They're special. It's run by responsible people who provide real value to dogs, owners, rescue efforts, and the broader community. Please support them. Thank you. Thank you very much.

[02:02:41] Doris Yaping, followed by Jennifer Brand, followed by Thomas Pearson. Good evening. Good evening everyone. My name is Doris and I reside in Ashburn. At one point i had a nearly blind senior yellow lab who needed daily meds several times a day and a five month old german shepherd puppy with boundless energy i usually could manage until health issues led to a hospital stay with extended bed rest knowing my dogs were in great hands allowed me

[02:03:14] to focus on my recovery beatrice brought me so much joy and comfort when i see the daily photos of the dogs. They walk, they play like happy kids. For some people, their dogs are their kids. Those photos made me smile when smiling was so difficult. Over the last five years, whether traveling for work or for fun, across countless visits, every time I drop off my dogs or pick her up, I never encountered any traffic, odor, or chaos.

[02:03:50] The family that run Happy Paws was always so professional, prompt, and courteous. They are truly hardworking members that service in our community. They are highly rated and praised in Loudoun for their excellent care of dogs and their well-managed facility.

[02:04:10] If you are a dog, Happy Paws' spacious outdoor play area is like your Disney. So whenever I'm dropping off my dog, I told her, hey, let's go to Disney. Thank you for hearing me. I like that.

[02:04:29] Jennifer Brin, followed by Thomas Pearson, followed by Ziggy A. Good evening. Hello, board members. I'm Jennifer Brin. I live on Woodside Place, exactly two blocks from Happy Paws. And I'm here to talk a little bit about the impact that Happy Paws has on the neighborhood.

[02:04:50] because I'm not a Happy Paws client. In fact, I didn't know they existed until I got a letter in the mail talking about the public hearings. So I walk my dogs down that street quite often. I drive down the street quite often at the speed limit. And if you didn't tell me they were there, I would not have known it. I've I have never noticed any excessive traffic or excessive noise coming from there.

[02:05:22] In fact, I think my dog wouldn't be allowed to go because he's very loud. And I have lived here, I've lived in the neighborhood for 12 years. My husband grew up here and inherited the house from his family.

[02:05:38] And he also agrees, like, we have never noticed anything. All I can say is they have been very, very nice to me when I have talked to them, and I would like to say I cannot tell that there has been an impact on traffic or anything else.

[02:05:59] As somebody else mentioned, we're a cut-through street between Evergreen Mills and Gladesville, and when I see people running that four-way stop sign that my house is at, that's generally where they're going or coming from. So I don't—I feel like there's more I could say, but honestly, I have not seen any evidence that this has negatively impacted the area, and I hope they get to continue.

[02:06:31] Maybe I'll have a dog that behaves someday. Ms. Britt, I don't know if I've ever learned so much about a person ever from when they're speaking to me for two minutes. You have a dog that's loud. You drive the speed limit. I've got all kinds of information for you right there.

[02:06:47] It's fantastic. Thomas Pearson, followed by Zach A., followed by Rebecca Jimenez. Good evening, sir. Good evening. I'm Tom Pearson. I live across the street and one house down from Happy Paws.

[02:07:04] I'm a happy customer of Happy Paws. I'm a happy constituent of Mr. Crony. You've heard that Beatriz and Marcel operate a very clean and well-organized business. It's a kennel only in the strictest sense.

[02:07:20] It's more like a doggy daycare. I'm sorry, it's more like a doggy resort. Our dog cannot wait to get there and tugs us up the street, knows the driveway, and has to be dragged home. He loves it.

[02:07:36] In this respect, this business is a boon to our neighborhood, and I would present it as such to a prospective homeowner. We live in relatively large lots, and people have dogs, and this is the kind of place that you feel very good about bringing your family member.

[02:08:00] So not only are they good business people, but Marcel and Beatriz are first-rate people in and of themselves, and they're good neighbors. They're hardworking, and they're honest. They're the kind of people who make this neighborhood a good place to live. They've worked hard to create and maintain a

beautiful home and grounds that are clean and well-kept, an improvement to our neighborhood from before.

[02:08:25] And they have raised two friendly and responsible kids. This is, in short, a terrific family that makes our neighborhood a better place. To address complaints that we've heard before, I live so nearby, I walk up and down the street a couple times a day walking our dog.

[02:08:42] The only dogs I hear are from across the street from Beatrice and Marcel. Traffic, like others have said, we're on a cut-through. We've been living there since 2011, so there's nothing new there.

[02:08:58] It's not their doing. In short, these are hard-working people with integrity, the kind that you want in your neighborhood, and they are operating a business that clearly responds to a need. Thank you, sir. Thank you. Zaki A followed by Rebecca Jimenez followed by Jim Wishmeyer. Good evening. Good evening.

[02:09:23] My name is Zaki and I'm here to speak in support of Happy Clause K9. My wife and I do not have children but we do have two beautiful husky and sheba mixes. When it comes to pet care you need a facility you can truly trust with your most precious family members. Marcel and Beatrice treat our pups as a part of their own family. I actually researched the pet facilities in Loudoun County, and there are 22 total, but there are only three that are perfectly five-star rated.

[02:09:52] One of those is Happy Paws. That level of trust and excellence is extremely, extremely rare. Every time I drop my dogs off, I'm constantly impressed at how calm, quiet, and clean the location is. For a pet care facility, I was amazed to not hear any dogs barking. Truly, Go check it out. I was amazed. That speaks to the exceptional talent of animal enrichment and care that they give. Personally, I have not witnessed many of the concerns that have been raised. I take my dogs to Happy Paws due to the openness of the location and the ability for our beloved dogs to play in a natural outdoor setting with close personal human care. Homes in Loudoun County

[02:10:31] are only getting smaller and smaller, as you may have noticed. So an open play space like this is a much-needed resource for our residents. Happy Paws is not just a business, it's a community asset, one that enriches both the lives of pets and their owners across Loudoun County.

[02:10:47] As shown today by the large support, I'd urge the county to recognize the value that Happy Paws brings to our community and allow them to continue their operations without any unnecessary setbacks or impediments. Thank you. Thank you very much. Rebecca Jimenez, followed by Jim Wishmeyer, followed by Benjamin Kota. Good evening. Good evening. I'm here tonight because Happy Paws K9 has made a life-changing difference for my dog, Buck. I hope you will support a path that allows them to continue serving our community. Buck is a rescued American dingo who spent much of his early life surviving on his own. He loves people, but he struggled with other dogs. We tried

[02:11:27] many daycare facilities, but Buck was repeatedly labeled as aggressive. They declared him impossible to rehabilitate. Then we found Happy Paws. At other facilities, Buck's evaluations were stressful and chaotic. There were growls, anxious dogs, raised voices, and ultimately the conclusion that he wasn't a good fit. At Happy Paws, something incredible happened. Buck relaxed immediately. Instead of seeing a problem, Beatrice understood him. Within days, we saw a miraculous reduction in Buck's social anxiety. He came home happy, exhausted, and more confident than ever before. The true impact became clear last October when two large, friendly, but unfamiliar dogs

[02:12:06] wandered onto our property. Before Happy Paws, Buck's reactivity would have put everyone's safety at risk. Instead, he happily ran and played with them while my husband contacted their owner. We later learned that those dogs actually belong to Supervisor Ticoni. Standing there watching them play, I realized just how remarkable Buck's transformation had been.

[02:12:33] Just weeks prior, he would have panicked. Instead, he was calm and joyful, and I credit Happy Paws entirely for that. What makes Happy Paws special is that every dog is seen and understood. Beatriz and Marcel have created a safe, consistent environment where dogs can truly thrive.

[02:12:49] Families like mine depend on them. As you consider this matter, I hope you focus on the real impact Happy Paws has had on this community. It is a thoughtful business that fits naturally into Loudoun's rural character while providing an essential service. Loudoun County needs more places like Happy Paws for the dogs and for the families who love them. Thank you for your time. Let me tell you, Mr. Coney's dog, what's that dog's name? Giggs knocked me down. He knocked me down at the Middlebrook Parade, he may have knocked me down.

[02:13:21] I was literally injured. So you and I should talk. I'm happy to see you, ma'am. Thank you very much. Thank you. I'm sorry. It seems I missed one person. So, yeah, Kathleen Dehorn, did I miss you?

[02:13:37] I am very, very sorry, ma'am. Come on up, and after you will be Jim. Nope. Now I've lost my place here. After you, yes, will be Jim Wishmeyer. Hi how are you? My name is Kathleen DeThorne and I have lived on Woodcock Court in Big Woods since 1997. I am just around the corner from Happy Paws and a very happy client as is my dog Jackson.

[02:14:01] I have walked this neighborhood and rolling acres daily and can comment on the changes since the business opened. Marcel and Beatrice started Happy Paws from a love of dogs and wanting to create a safe and nurturing place for them. They've done that. Their play yard is full of dog-friendly toys and games that are managed and promoted by the in-yard staff. The dogs are never unattended.

[02:14:24] I can say there is no barking like there is from dogs left outside in their own yards to race across and bark as I pass. Just this morning, I was passed at speed by six cars, only two of which stopped at the stop sign at Oakland's Chase, and then proceeded past Happy Paws. They were not clients dropping off dogs. I know that Marcel and Beatrice have been open to any and all inspections and have spent considerable funds to make the changes requested. They have adjusted the separation of their friends from those two neighbors that live adjacent, which, by the way, are not contesting them operating their business. They have cut down the number of dogs on the

[02:15:04] property at one time, much to the disappointment of clients that are no longer able to take their dogs there because of that limitation. This situation is the result of one or two homeowners that want this business shut down and the Utenbergers made to leave their home. They have levied false claims, made threats and accusations about the business, and more importantly, about the family themselves. Some of that negativity is also directed to those of us that hope Happy Paws will stay. This is not acceptable. Please consider the number of families and dogs that love and count on happy paws for the safe and well-managed daycare visits

[02:15:41] and overnight stays and allow them to operate their business. Thank you. Thank you, and I'm sorry I missed your name. I apologize for that. Jim Wischmeyer, followed by Benjamin Cota, followed by, I think, Marcia Washburn-Burm. I think that's what it says.

[02:15:57] Good evening, sir. Good evening, Madam Chair and Supervisors. Thank you for your serving here. And I want to thank Supervisor Sains for stopping by our house the other day and having a conversation and hearing, you know, our perspective. My wife and I live at 20448 Oatlands Chase Place.

[02:16:16] We are one of those two properties adjacent to Happy Paws, and we are directly to the north. We've lived here since the summer of 2021. We moved here in August, the same month that Happy Paws moved in.

[02:16:33] And not to diminish the concerns of others that, you know, we have heard about and learned about, I share our experience, and we have absolutely no complaints, no concerns about Happy Paws being our next-door neighbor. We have never used their business, but that's because we stopped boarding our dogs 20 years ago.

[02:16:54] We have a number of family members who have loving dogs, and so we can just, you know, pawn them off on them. So our property gently slopes downhill from theirs, and we have never seen any signs of any kind of runoff of dirt or fecal material.

[02:17:11] We've never experienced any odors coming from Happy Paws next door after a rain, including today. And we've never seen any residue of such dirt or material on the street. And, you know, with the way roads are structured with the crown in the middle, it seems kind of, well, a stretch to think that stuff could just wash across the street to somebody else's yard.

[02:17:39] Okay, we do hear barking, but not from Happy Paws, from all the other dogs in the neighborhood, particularly our little Westie, who likes to go outside and pretend that she's a guard dog. You know, I can't say anything else about the traffic. We have not been impacted negatively by the traffic.

[02:17:58] We have three large windows in our kitchen that I'm out of time. You're out of time. Anyway. Thank you. All right. Thank you. I have not had this much fun in a public hearing ever. I'm like getting doggy names, and it's great.

[02:18:14] Okay, Benjamin Cota, followed by Marcia Washburn, followed by Jim Campbell. Good evening. Good evening. My name is Benjamin Cota, and I live in Brambleton, Virginia, with my wife, Sondra, 13-year-old daughter, and our seven-and-a-half-year-old English cream golden retriever named Parker.

[02:18:32] He's about 115 pounds or so on a good day. He's very big. He does not fit in a crate. He's great at Happy Paws because he can go inside the house, hang out. We go on vacation. We can drop him off there. He's not in a crate. We've taken him to traditional places.

[02:18:47] He gets stressed out. He's too big. He doesn't fit in a crate. So we've been bringing Parker to Happy Paws for a number of years. Again, brought him to the usual places that didn't quite work out. We found Happy Paws. It was unlike any other place. It's smart. It's an innovative concept.

[02:19:03] These folks have opened their homes to not only our dogs, but others. And our boy Parker has been so happy. You want the best for your kids. You want the best for your dogs. This is the best place in this county. One thing to note, this is such a smart concept.

[02:19:20] and we should encourage folks to innovate and foster small business. I worry about setting too low of a density limit that will actually put happy paws out of business. I don't know anything about their business or their situation, but I can do math, although I'm a lawyer. We can't do math.

[02:19:36] And if the limit is too low, the only response is going to be to increase rates, right? You saw at the last hearing, so many first responders were able to bring their dogs to happy paws. Some of us probably can absorb increased rates, but a lot of first responders who don't have that income aren't going to be able to afford it. So I would just encourage you all to grant this application and grant it at the higher limit. Thank you very much. We do have three lawyers on this dais right now, so they can't do math. For the record, Madam Chair, I can do math.

[02:20:09] Marcia, I think it's Marcia Washburn, followed by Jim Campbell. Good evening. Good evening, Ms. Chairman and members of the board. My name is Marsha Washburn, and I live on Oatland's Chase Place, about one-tenth of a mile from Happy Paws K9. It's that little triangle that you see on the map up there.

[02:20:26] I want to be clear that I support small business and entrepreneurship. I simply believe this use at this scale belongs in a commercial location suited to it rather than in the middle of our residential neighborhood. I acknowledge that the applicants provide care their clients' value, as shown by the number of clients present here and by the stories you've heard.

[02:20:43] and i have no quarrel with them personally my comments tonight solely concern land use and impact on the surrounding properties not the applicant's personal character the question before you is not whether kennels are permissible in the abstract but whether this use at this scale fits this particular site on that question section 10.11.01d of the zoning ordinance directs the board to weigh its factors for consideration among them the nature and intensity of the proposed use and its impact on nearby properties.

[02:21:15] That is my concern. Although the parcel is zoned AR1, our neighborhood was platted as a cluster development. The surrounding homes sit on small, closely spaced lots, not the large, multi-acre parcels the AR1 district ordinarily contemplates. With homes this close, I respectfully question whether an operation of this scale can satisfy standards for setbacks and noise in practice.

[02:21:37] I would also ask the board to consider the precedent an approval would set. if a commercial scale kennel can be authorized at this intensity on lots this small with setbacks reduced below the county's own standard then the same case can be made on numerous other rural residential lots across loudon a decision to approve here is not confined to this property it becomes the measure for the next application and the one after that the factors for consideration exist so that scale and compatibility are judged before that line is crossed not after the stated purpose of these standards is to minimize impact on neighboring properties and to protect property values, but where they conflict on a site like this, the ordinance asks you to protect the neighborhood.

[02:22:17] In that spirit, I would ask you to don I. Thank you for your time and service. Thank you. Jim Campbell, you will be followed by Tracy Crow. Good evening, sir. Good evening. I'm Jim Campbell. I'm an attorney here in Leesburg. I've been practicing here since July of 1986, working principally for the first 20 or 25 years of my career in land use. This is the first time I have ever appeared before a public body opposing a land use application of any kind in any of the jurisdictions where I practice. But in this instance, there's something unique, that several folks have talked about this being unprecedented. Many folks characterize this as a home-based business.

[02:22:58] If I were advising the theoretical client about this opportunity, I would first look to a very well-crafted zoning ordinance that defines what a single-family dwelling is. That's in Chapter 12. Then Chapter

12 also gives you the definition of a home-live-work permission and a home occupation.

[02:23:20] The ordinance tells us what we can and cannot do in our residences. And one thing that's missing from the dialogue here is the strict application of your well-reasoned ordinance that says there are only certain things that can be done in a residence, in a dwelling.

[02:23:36] And the part that's missing, if I came to you theoretically and said, I'm going to form a business and a residence on a three-acre lot that got its residential use or occupancy permit in 1972, and I'm going to put 90 percent, all but the bathrooms, to use commercially, including having children that live in that residence be caretakers for animals, sleeping with them, as their website indicates. You might think, I'm crazy. I might be tarred and feathered.

[02:24:03] But in this instance, what this applicant is asking you to do is to ignore clear provisions of your own ordinance. Look at Article 4, 4.0203, which is the live-work dwelling says, you can't do animal services in a live-work dwelling period. Then look at the home occupation ordinance 3.03. There are straightforward objective guidelines that simply say you cannot approve this application. Thank you. Thank you, sir. Tracy Crow, you will be followed by Justin

[02:24:37] Hogan. Good evening, ma'am. Thank you. Good evening. I am Tracy Crow. My husband and I are here in enthusiastic support of Happy Paws K-9. I've lived in Leesburg since 1995.

[02:24:56] And the area has completely changed. It's vital that we protect and encourage the local businesses that don't just provide service but truly enrich our community's quality of life. For many of us, most of us, our dogs are our family.

[02:25:12] That's exactly how they are treated at Happy Paws Canine. What sets it apart is their commitment to a healthy natural environment. And unlike facilities, as we've heard tonight, that keep dogs crated or confined to small indoor spaces all day, we've tried it.

[02:25:29] Happy Paws offers spacious outdoor play areas. And it's essential for the well-being of our pets. They reduce stress, they allow our dogs to socialize, and they touch grass, literally. I'm a teacher. We tell the students that every day. But beyond the wonderful facility, it's the incredible staff that makes the business so special.

[02:25:50] They don't just supervise the dogs. They actually form genuine bonds with them. They know their names, their unique personalities, and their specific needs. We also have a rescue, and it's clear that the owners and the staff pour their hearts into what they do.

[02:26:09] As a pet parent, finding a place where you feel completely confident leaving your pet is invaluable. And my dog, Cinnamon, doesn't just tolerate going to daycare. She absolutely loves it. Knowing Cinnamon is safe, happy, and loved gives me complete peace of mind.

[02:26:25] So, supporting Happy Paws K9 means supporting responsible pet care, local jobs, a stronger, more connected community, and I respectfully urge you to allow them continue to bring this joy to Cinnamon and other local dogs. Thank you.

[02:26:40] Thank you. Thank you, ma'am. Justin Hogan, followed by Radislav Rusek. Good evening. Good evening. My name is Justin Hogan. I reside at 40820 Oak Bucket Lane, which is the house that's 89 feet from their property.

[02:27:01] I'm here in support of Happy Paws. I'm a customer of Happy Paws. The edge of our property line, basically that 89 feet is where our master bedroom is, which is on the main level with a separate wing.

[02:27:20] And I can fully say if there's any issues I had with noise, whatever, everything, every conversation I've had with Marcel and Beatrice up until this point has been nothing but pleasant.

[02:27:35] And I know that if I did have any concerns or anything, that they would fully be there to address them and correct it and take all the steps they're doing right now to, you know, make sure they're in line with everything they need to do and make the community satisfied.

[02:27:56] And Mr. Armstrong, who spoke earlier, I also have kids at that same bus stop. And I can fully say that the speeding, the non-stopping and stuff that I witness, it's never going into happy pause.

[02:28:14] And I promise if I see a black SUV that pulls in at 3 p.m. speeding, Marcel would get a text from me so he could have a conversation with them. But it's just never come down to that. Outside of that, I share the same sentiment, reducing the capacity of dogs who'd really potentially put them out of business.

[02:28:39] Only they know their numbers and what they can handle and what people like first responders and people really rely on happy paws for might not be able to afford. Because they'd have no other solution but to raise a rate to stay in business or they're out of business.

[02:28:56] Thank you, sir. Thank you. Thank you. Radoslaw Rusek, followed by Adrian, I think it's Gruner. Good evening. Good evening. Thank you for the time. Like I said, Radoslaw Rusek, I'm from Brambleton, and we do have two dogs that attend Happy Paws, and I'm here in support of their proposals.

[02:29:20] So I thank all the comments that have been made, and I hope that we continue looking at this objectively to find a reasonable solution to make this business succeed and have a happy community here. I'll say hopefully that objectively we're looking at at least comparing citrus fruit to citrus fruit.

[02:29:39] Can't exactly compare kid care with dog hair. Additionally, having a lifetime in the military, including working for commanders on an entire big basis, someone says, I have 100 acres and I'm doing this. First question that comes to mind, how much are you actually devoting to that task?

[02:29:55] I don't care if you have 100, 500, whatever acres, as an example. Additionally, I wanted to scrutinize some of the comments that have been said now in the previous meeting about the speeding, the percentage, all this. My first question would be, show me the facts. Show me the proof.

[02:30:11] 80% of the people are from here or speeding or this. Where's your proof? All I hear is baseless assumptions. I know for a fact that I don't speed. I move out of the way when people are walking their dogs in the neighborhood. Watch out for the neighborhood squirrels.

[02:30:27] And occasionally even stop for some of the rat, snakes, and racers that are around to get them off roads that don't get squashed. All in all, again, I just want to say, if we look at this objectively and hopefully arrive at the conclusion that the proposal is sound, I'm just going to echo pretty much what everybody else has said.

[02:30:48] I don't need to repeat it two, three, four, five times. Thank you very much. You live in Brambleton? Yes, ma'am. And you see rats and snakes really often? Street? Not there. Not there. Here, though. Okay, there. Got you. I did ask you to move a grouch you want a couple months back.

[02:31:05] No, you're not allowed. Thank you, sir. Adrienne Gruner, followed by Tony Regilio. Take your time, sir. Good.

[02:31:22] Oh, good evening. Good evening. Sorry, ma'am. Thank you. No problem. Thank you for letting me speak tonight. My name is Adrienne Gruner, and I'm a health care worker. My husband and I have been clients of Happy Paws for the past two years. One of the major appeals besides the amazing care they give is the hours that allow us to drop off before work.

[02:31:43] We lived off of Gleadsville Road, which is just around the corner, for 12 years, and Happy Paws was conveniently located less than a mile away and on our way home from work. Happy Paws has offered a wonderful, loving facility for our terrified rescue pup, who has done nothing but flourish and grow confidence in their care.

[02:32:01] At one point, we did try to take him to another facility nearby, only to have him kenneled there for most of the day with very few breaks, and when we bring him back, he would shake completely terrified in the parking lot and refused to go in. In comparison, he is always excited when he gets to happy paws.

[02:32:18] Marcel and Beatrice have helped us out on a few occasions when we had emergencies and were running late from shift work or had an emergency with our other dog that needed surgery. They are not just business owners, but neighbors and friends. Their children go to school with our son and their daughters in chorus with our son.

[02:32:36] It's disturbing to hear about and witness the harassment that they have endured online that seems to be from a few, a handful of people. They have received hateful, threatening, and racially driven emails, some of which have been from their own neighbors. Please also keep in mind when talking about concerns of the smell and other environmental impacts that this neighborhood backs to the landfill.

[02:32:57] We could smell the dump from our house over a mile away, depending on the wind. This business operates a clean facility, and I have never noticed a smell when I have picked up our dog. As far as the traffic is concerned, We have used this neighborhood with happy pauses for the cut through for our commute for over 14 years.

[02:33:14] You can remove this car from added traffic. I hope that the board will consider allowing this business that's family-owned, that directly benefits our community and our dogs to continue to operate. They are good neighbors, friends, and members of our community.

[02:33:30] Thank you. Thank you very much. Tony Virgilio, followed by Debbie Virgilio. Good. I have a presentation that I presented to you. Okay. All right. You gave it to them. Wonderful. Thank you. Well, let me start off by saying if Happy Paws were a Best of Loudoun competition, they would clearly win.

[02:33:48] And the number of customers here who support them, you know, I can understand their advocacy for it. But this isn't a customer voting for Best of Loudoun. This is, in fact, an issue that's associated with land use and the suitability for this within the community and within the area where we live.

[02:34:07] So I ask you to consider that. These are good people. They have needs. They obviously are looking in search for a good kennel, and I'm sure they will find one. The reality is that since 2021, when Beatrice and Marcel bought the property, they fully intended to open a dog kennel.

[02:34:25] They have said so to us and to others. They purchased a family residence intending to open a kennel. They should have purchased a place that was suitable for a kennel instead of buying the property they did buy and putting the kennel there. So they intended to operate the kennel. They started with four dogs, quickly expanded to over 39 dogs that they boarded, including their own.

[02:34:43] After a 2023 complaint, they filed a SPECS application. This was seeking approval retroactively. Basically, it was a clear ask for forgiveness instead of doing the permitting and permission up front. In 2025, the county staff submitted a report to the Planning Commission.

[02:34:59] It identified 10 major areas where they recommended not denial. The County Planning Commission subsequently went back and said, well, we'll allow for, accept this. But they indicated that they had severe restrictions. And the bottom line was that the applicant, Marcel, told the county, no, we're not going to comply with those restrictions.

[02:35:21] We've already, Jim has already talked about, Jim Campbell has talked about the issues associated with improper zoning. Let me direct my comments really to the policy issues. Approval would create some serious consequences for the county. It establishes precedent allowing family residences to be turned into commercial kennels.

[02:35:38] That's across the rural districts, inviting more illegal and unpermittable operations. It grants unfair competitive advantage to the legitimate kennels within the county by offering an alternative, which is so low cost that people will make money and open up more kennels around the county to be able to do that. And based upon this need, they will need to do that.

[02:35:54] Your time is up. I'm sorry. Your time is up. Thank you very much. I ask that you deny. Thank you. Debbie Virgilio, followed by Dan Miquel. I've been given permission.

[02:36:13] I recently have been sick, and I've lost some of my vision, and I cannot always read what's written. And with only two minutes, I may not be able to say more than 30 seconds. Would you like your husband to read it for you? So my husband is going to read for me, and I was told that was fine.

[02:36:29] Okay. Thank you so much. Thank you, ma'am. The reality is, to finish my report, we ask that you deny both of the special exceptions, direct immediate closure of the impermitted facility, alternatively, limit the number of dogs to 10, only five allowed outdoors at a time, reduce the size of the outdoor pen to 2,000 square feet, confine kennel operations to the basement only, not the entire house, and restrict the hours from 8 a. m. to 6 p. m.

[02:37:04] Right now, we have people showing up at 5.30 in the morning, between 5 and 5.30, dropping off their dogs. And the last person comes to pick up their dogs regularly at 10 p.m. These hours are just too long for us and require the maximum vegetative border because there is no vegetation at that location.

[02:37:20] My wife's presentation had to deal with the petition that we have. We have all of the residents except five from rolling acres, Sections 1 and 2. That amounts to 38 people. of which only 30, of which five support Happy Paws and the remainder do not.

[02:37:40] Of the people that do support Happy Paws that are here, that are neighbors, they've actually signed restrictive covenants opposed to Happy Paws, and I've put that in the record, and it's been filed with the court. So they may be telling you today that they're customers and they like it, but the bottom line is they've actually gone ahead and said that they do not want it in our neighborhood.

[02:37:58] Other areas around us, which include rolling roads, big woods, and others, have also filed restrictive covenants against the operation of a dog kennel in our neighborhood. And those residents have also signed our petitions, which we will be submitting to you. In closing, I have just a couple comments.

[02:38:15] And that is that the kennel itself had three dog fights within the past year. This is according to the owners of Happy Paws. Dogs have been injured in that. They've required veterinary care. We have been confronted by the owners of Happy Paws who have threatened us.

[02:38:31] And we have always had, less than a mile away from us, a legal kennel, which people can absolutely go to, and other areas. And most recently, a dog escaped from Cappy Paws, came across the street, and basically we had to capture, help them capture the dog and bring it back. Thank you.

[02:38:46] So I don't know what they're telling you about the operations, but they're not exactly what they are. Thank you so much. Thank you. Thank you. Dan Michael, I think, or Mikkell? Mikkell, followed by Samantha Howa. good evening sir hi my name is Dan Meikle and my wife is Erin Meikle we are my wife could not be here but I'm in here in support of Beatrice and Marcel and their staff as well as happy pause we were shocked to hear about all the accusations and everything that is going on with them so we

[02:39:21] wanted to include our support I'm a surgeon here in Loudoun County and my wife also has advanced degrees. Integrity is extremely important to us and we cannot allow this slander and accusations to go against them without us responding. When my wife and I moved here in 2021, we looked around here for several kennels for our Welsh Terrier Seamus. We are extremely discerning about who we trust to take care of him and found other boarding businesses to be in the area to be lacking.

[02:39:52] We are extremely impressed with everything that they do and they continue to impress us with each subsequent visit, we know without a doubt that they genuinely love him and would not trust his care to anyone else. Their service continues to impress us, and we refer to Happy Paws as Seamus's five-star resort. He has stayed with them for daycare and playtime, as well as two-week extended stays when we have been out of the country. We know that he is extremely well cared for. He always seems relaxed and happy in the photos and videos that we get each day.

[02:40:23] After hours of playtime, he is allowed to cuddle and snooze with family members before he goes to bed in a secure location with someone in sight at all times. We know he is right at home. We recommend Happy Paws enthusiastically to all of our multiple friends and neighbors, and everyone is happy with this recommendation, giving Marcel and Beatrice rave reviews.

[02:40:43] We urge you to support this measure. Thank you. Thank you, sir. Do we have any more speakers down there? I have two more before—or, yeah, two more before—are you guys no more down there? No? Okay. The last two speakers are Samantha Hawa and Tim, I think it's Dimi.

[02:41:03] Samantha? Yes. Good evening. Can you hear me? We can hear you just fine. Wonderful. Thank you so much. I will talk fast. Good evening. My name is Samantha Hawa. I'm a longtime Loudoun County resident, the PT president of Smart Smell Middle School in Leifert, and also a first-time dog mom of two rescue puppies, Pixie and Pebble.

[02:41:21] We recommended Happy Paws, buy a dog at a dog park. We made a point with Petra, so we took Pixie and Pebbles there for meet and greet. The home and the property were absolutely beautiful, and we immediately felt like a safe space for Pebbles and Pixie. Our puppies don't want to leave when we drop them off for the day, and our family just loves looking at all the pictures that Beatrice sends.

[02:41:41] Over 80 pictures of all the fun. My son gets to enjoy them. Their grandma, that she now is the grandmother of puppies, loves all the pictures of their waterfront. The first day, they came home with new bandanas for their first day, so it was wonderful. Happy Paws is the only dog boarding daycare that we would ever feel trust with our fur babies.

[02:42:02] One of the other aspects that we love about Happy Paws, it gives our dogs, Pebbles and Pixies, a day to have fun with other dogs that are also well-mannered, sweet dogs. We've taken them before to dog parks, had not great experiences, so Happy Paws is the only place that we take Pixies and Pebbles.

[02:42:20] And again, it's great to see the pictures because they're not together all the time. They've got new friends and friends Pixie also, or Pebbles, I'm sorry, also did find out that she's got a little boyfriend at Happy Paws. So we're hoping nothing changes so they can still, you know, have a summer romance. I would respectfully like to ask to let Happy Paws maintain the way they manage this happy house for dogs.

[02:42:42] Thank you very much for the time. Thank you very much. Thank you. We hope we don't have any happy puppies. And the last speaker will be Tim Demie. I think it's D-E-E-M-I-E. It's virtual.

[02:42:59] Yes, ma'am. Tim Demme, Loudoun County resident in 2013. I've got two boxers, male and female, Nico and Luna. Nico is pretty, but he's stubborn and he's not very smart. They bark a lot.

[02:43:14] My neighbors, you know, they don't love me. I'll put it that way. But when they are with Happy Paws, he is a perfect gentleman. I get pics all the time of the care and support that he's getting. And I promise you, when he comes home, he does not speak to me for two days. And I'm not kidding.

[02:43:31] It's a clean property, strict drop-off, very crisp. Marcel and Beatrice are model citizens. The employees are diligent. There's ongoing reinvestment in the property. And Beatrice is absolutely the alpha, and her employees follow suit.

[02:43:48] I've been a lifetime dog owner, and I've never seen any human being have such control. so effortlessly with a number of dogs. So very impressive organization, and she should be the model in which others follow.

[02:44:07] I applaud Marcel and Bea as business owners, and especially as husband and wife. There's a gentleman that had mentioned if you restrict this stuff, the rates increase. I certainly experience that as a single father. Otherwise, I would be an ongoing customer. But if neighbors are supportive, I see no reason to deny the exception request.

[02:44:26] and anybody, you know, making zoning arguments in Loudoun County, I just encourage you to spend your efforts in other areas. If they are not successful with this exception request, I only pray that it's been the best word-of-mouth marketing opportunity that yields a smooth transition for the business and the family. Thank you for your time. Thank you, sir. And thank you, everyone, for coming out. That was our last speaker. Thank you, everyone, for coming out to speak to us this evening. I'm going to go to the district supervisor, which is Mr. Crony, and she's going to make a motion.

[02:44:57] Thank you, Chair Randall. You're welcome. I want to thank everybody for coming out. I move that the Board of Supervisors forward Leji 2024-00012, Happy Pause K-9, SPAC 2024-0021, and SPAC 2024-0024 to the July 21st, 2026 Board of Supervisors business meeting for action.

[02:45:22] Second. I'll take that second. All right, Mr. Craig, do you have a... opening. Yeah. So, um, this place is amazing. I hear that. Um, I think Marcel, um, you do have a unique model and clearly, um, you're

meeting a need, you know, there's a need for this in the community. Um, you are, uh, very professional and, um, I, I know that you're, you know, really taking good care of the dogs, especially when I visited. Um, but I do need to look out for the land use,

[02:45:57] you know, for the neighbors. This is a residential community, so it is a balance. You know, that's my job is to look for a balance, making sure that you can still operate and there's a path forward for you, but also a quality of life for the neighbors. And, you know, I hear that you have support from some of your neighbors, but, you know, what if they move away? I would hate to put them in a position where they're really close when we have the requirement for a 100-foot

[02:46:30] setback. With that, I am willing to get rid of the soil testing. I think that that's not something that staff even supports, and I don't know how that would be implemented. The amount of employees, uh i think going with your recommendation makes sense um that that's at least um consistent with the standard of a kennel so um i can go with that um as far as the dogs outside i think that um 12 is is seems fine i know you have two pens so it sounds like you want to be able to have some

[02:47:08] flexibility where the dogs are at one time, but, but, but keep to the number of 12, um, which is great. Um, but I'm still, uh, going to support probably the planning commission recommendation of 16, um, with the reason being that, you know, some of the kennels that we have that have a little more acreage have 15 dogs. You know, we have, we have the example of a 4.5 acre kennel that has 15 dogs. And then, of course, we were given the example of 30 dogs at a 16-acre kennel.

[02:47:42] So I support with the PC. And the Planning Commission, just so everybody knows, they went through multiple work sessions. I really think they rolled up their sleeves to figure out what made sense. And they tried to find a balance, realizing that, you know, the scale and intensity needs to be considered um so you know i do support that and then i'd like to work with you on the setbacks i hear what supervisor brissman is saying you know i would hate to have to tear down all the trees um you know shade is important uh for daycare um for dogs or children so um so i want to work

[02:48:20] with you on that so i'm happy to keep what you have now but i want to work with you on it um so thank you that's my comments and if you want to close you have closing um just so you the staff if you did not hear that the motion did not include the soil testing so there will be no soil testing in this motion okay madam chair can we also get a straw poll on the number of dogs the agreed upon setback we don't we won't we won't do a straw poll okay i'm sorry we won't do a straw poll but but but the the motion that's on the table is the motion on the

[02:48:54] table. Okay. And so what is, with respect, what is not clear about the motion on the table just so we can do that right now? So we have the two competing conditions. Can you put up one slide real quick? So on terms of the number of dogs, I believe Suraj Kroni said 16. If there's consensus for that, we can update the conditions of approval should this go to a business meeting.

[02:49:18] We need direction on which limits should be in the conditions that come back to you in the next business. Vice President McClain didn't make that as part of her motion one way or the other as part of her comments, so I'm going to give her a second to ask her does she want to amend the motion to say anything else as far as numbers with this being your district.

[02:49:38] I think you said 16, actually. I went with what the Planning Commission recommended. Would you want that to be in the motion? Yeah, it can be, but it will come back, you know, for the board of, yeah,

for the business meeting.

[02:49:55] But as they have this discussion. And then the other three, I said I could work with the applicant on the other three, the applicant's proposal. Marcia, what do you need right now? So you've got the 16. With supervisor cronies, we have 16 is the recommended number of dogs.

[02:50:12] With the setback, I think there may be variation to 45. Your intents to go work with the applicant on that without objection. Yeah, see how we can work together. employees, so that's currently was supporting the applicant's request, which is on the right, and then regarding the maximum number of dogs outside would be the applicant's request of total across both play areas. Okay, you're good. And removing the soil condition. And as the seconder of that motion, I will agree with all that. Thank you. Thank you. Thank you. Mr. Bricksman.

[02:50:41] Thank you, Madam Chair. I feel the need to say my dog's names. My first dog was a purebred chocolate lab his name was Bailey and my dog I have now is an adopted rescue yellow lab named sailor I've had personal experience with kennels and strip malls and they are not pleasant for dogs and so as we are noodling this colleagues I want you to think about the comparison with all the other places that are literally strip malls where they keep dogs in their crates all day long they may get a walk outside for 10 minutes. We were taking our dog down to Catlett, Virginia

[02:51:20] to find a place like this because we didn't, I was in tears when I went into these kennels and I saw how these dogs are cared for in air quotes. And I don't know if they even have a restriction on the numbers that they can have in there. So I feel like we're being really paternalistic to tell a business how many dogs they can have. It might not be 16 acres but it is heads and shoulders above anything that you will see in a kennel when you're driving by a strip mall. And so I encourage folks to go visit the site if you haven't. I smelled nothing. I heard no noise. These guys have made

[02:51:59] huge investments in this small business because they thought they were going to get hoping they would get permission for 30 or 40 dogs. So I don't agree that it should be restricted to 16 dogs. I think we're going to put them out of business. So I think that we should approve what the applicant is asking for, and that's at least 25 dogs. I would say excluding the owner's dogs, I would allow them to go to 30 dogs. They have turned their lives over to this. I mean, Beatrice has a mission that no dog will ever die in a doggy boarding situation, not one dog ever. I think she would probably take 200 dogs if she could. I think the ratio that the Planning Commission

[02:52:39] set out is unacceptable. I think that anyone who moves here is going to hopefully do their investigation and figure out that they might be living next to this small business just like they might be living next to an airport. I think we should allow the 45-foot eastern setback. I think the hours should stay at 6 a.m. and they have created a way that first responders can drop off um and pick up they've turned the garage over to that so that it can happen quietly and our first responders our emergency room nurses need this um i one um speaker said that you make the

[02:53:16] community good and i'm here to tell you as immigrants who are trying to run a small business you don't just make the community good you make our country great it's you that makes our country great because you've come here to live your dream you've invested tons of money and turned over your home to a small business and you are supporting all kinds of jobs and people in this community and I am NOT going to tell you that you can only have 16 dogs thank you miss miss glass thank you madam chair I

[02:53:52] am in support of of this motion however I I would also consider think about increasing the number of dogs in the facility to the applicant's proposal.

[02:54:12] However, I just I'm just really glad to see the overwhelming support of the community that has come out here today. Thank you and thank you for telling your stories. I think if you're a dog owner you you have stories about maybe some good times at a facility and maybe some bad times. I had, I remember years ago, I had a dog named Ivan, and we took him to a chain boarding facility. We went on vacation, and when we got back, he was

[02:54:47] very aggressive. So I don't know what happened to him in that facility, but I'm so glad to hear that We have people who have a love for taking care of dogs and that do a great job and that people come out to support you.

[02:55:09] That's all I have to say. Thank you. Ms. Glass has two dogettes. They're not actually dogettes. I have two chihuahuas now. They're dogettes. And they would not be able to come to your facility. That's why I call them dogettes because they're not really dogs.

[02:55:27] Mr. Kirshner. Thank you, Madam Chair. First of all, thank you, everyone, for coming out. I appreciate it. It certainly was lopsided in favor of those who are against it. That's significantly and noticeably so. With that said, I certainly am leaning towards supporting the application.

[02:55:42] I will tell you this, that first of all, this is a desperate need we have in the county. I am a bit concerned this is in a residential area. But what was very telling to me was the lady that stood up here and said, I've been living in this neighborhood for X number of years.

[02:55:58] I didn't even know there was a doggy take care of there, which is a bit shocking to me because if you walk by the house, you would assume you would hear it, but obviously they're running it very well. I'm not so concerned about the numbers proposed by the applicant if, indeed, we're going to do no more than 12 outside at a time.

[02:56:16] To me, that seems pretty manageable because if you knock it down to 15, they're all going to be out there anyway. What's the difference if 12 are inside and 12 are outside? I understand there may be some concerns about the enforceability of that, but there's been nothing about this applicant that would suggest that they're being, would be dishonest or try to skirt zoning laws or whatnot.

[02:56:35] I would, I would, I am concerned because I know what it is to run a small business. I've had many small businesses, some failed, some were successful, some more than others. It, these small businesses operate on a very tight margin. The thing that probably concerned me the most were some of the code sections that were brought up.

[02:56:56] I've spoken with our county attorney. I'm going to be looking at those closely to ensure that we are kind of following the letter of the law. But it's always been my understanding in situations like this, this is why we have special exceptions. It's unlawful under the zoning code to ultimately do it, but there are exceptions that can be brought to the board, and we can overrule those requirements by providing special exception for a particular use.

[02:57:21] in this case it happens to be a doggy daycare. So with that said I'm leaning towards it I will look further into it. Thank you for providing a service to the county. I the one thing I would say one of the objections that was made here and that is well what if someone moved in later you know I do believe

there's a level of responsibility we all have for due diligence and I think if you were ever to move from this facility I think the chance of someone buying it and turning it into doggy daycare would probably be slim to none. I think this is a fairly rare thing. And so obviously you are going to be the primary user and the operator of this, and the people who come out and spoke

[02:57:58] speak volumes as to your character and your willingness to run it well. Our decision, or at least my thought process, may be very different if we had a lot more people in the community who had concerns. As a matter of fact, I have had a couple doggy daycares in my district, one which I voted against, one which I voted for. And it has a lot to do with how the community reacted to the user of that. And so that speaks volumes. And that certainly gets me kind of on one side of the fence versus the other. Obviously, the legal aspect will be a very important thing for me to look at. But thank you very much. Thank you. Mr. Sainz. Thank you, Madam Chair. Thank you to everybody that came out and spoke and sent the emails. We've been getting a lot of emails on

[02:58:37] this as well. So thank you for sharing. I did go out this past Saturday to the neighborhood, Walked around, knocked on a few doors. Unfortunately, not everybody was home, the doors that I knocked on, but I did speak to two folks. One was in support. One was not in support of what's going on.

[02:58:53] But the folks that were not in support, they made, to me, their biggest issue, or there's three big issues for them. One was the hours of operation, the numbers of dogs and possible worries of contamination in the water and runoff because the house that you have does sit up on a hill and things can run down into the street and into their neighbor's yards and water, et cetera.

[02:59:25] And I think those are definitely serious concerns to review and discuss further and have more conversations. As I said earlier, I'm in favor of, and I think Supervisor Tritoni said this as well, going with the recommendation from the Planning Commission and the number of dogs. As I mentioned earlier, I think you need to tighten up the hours because I think having folks come in a residential area at 10, 30, 11 o'clock at night and super early in the morning, that is a disruptive, especially if it's every single day.

[02:59:54] So in order for me to support this, those are definitely the two things that I need to see amended when this comes back to us in July. So, thank you. Thank you. Mr. Turner. Thank you, Madam Chair. Well, as I said, I was dead set against this application. It had been for months until it came to the meeting night.

[03:00:11] So, for me, the applicant has demonstrated beyond any question in my mind at all that they're experts in the field. They know what they're doing. They're treating the animals well. That's my probably number one priority.

[03:00:28] They're treating the animals well. So that pulls me back to, okay, let's take it a step at a time. Number one is a compatible use for the zoning. And I think staff says in their item that it is compatible as a rural use business for this area.

[03:00:49] And that's what I needed to hear. I'm okay with that if we can get past that threshold. The next threshold we have to meet is what's the best use of the property for the operation if I've made the leap to say, yes, okay, this is a valid, this is a reasonable operation. I don't care how many work sessions the Planning Commission had over this project.

[03:01:10] The applicant has demonstrated to me and has been operating for years a highly successful, highly viable, very animal-sensitive and neighbor-sensitive, frankly, operation. I'm going to go with

whatever the applicant says they need for their parameters. So I fully support all of the applicant's proposed conditions.

[03:01:29] They're the experts, and I don't care how many times a planning commission meets, they're not. And they're making judgments that 16 dogs is better than 25 dogs, based on what? You have no experience in the field. Why is 16 better than 25?

[03:01:45] Arguing whether it should be 45 feet or 75 feet to me is almost irrelevant. I think the owner has demonstrated absolutely that they know what they're doing, and I'm inclined to defer to their expertise. I was watching the homeowner that came up to speak that is in the house that's 89 feet away. And I thought, okay, if there's going to be a complaint about noise in the facility, it's going to be from this homeowner. And he was fully supportive of the operation. Everything that I can see that is a valid complaint about

[03:02:21] this operation in this location, to me, is addressed in the actual way the business is operated. And to the point that was just made earlier, yeah, we do have zoning ordinances. And if we believe an operation is compatible with that intended use of the land, then we have the capacity to offer an exception. And I think this is one of those cases. Once I make that decision, I'm going with the experts. As far as I'm concerned, they're the experts. So whatever they recommend is what I'm going to push for at the board meeting. Thank you. So I tend to be a

[03:02:56] little less impassioned about things. That's just kind of who I am in general. I do appreciate everyone that came out, but I almost never indicate how I'm going to vote for something until I've done all of my homework, and I've not done that yet. I am a little concerned, maybe even a lot concerned, that the business was operated for two years without having any permission to operate it.

[03:03:23] I don't think that's okay, and I haven't gotten a really good answer as to why that happened. And I'd like to know why that happened, to be quite honest. I think that's a fair question. Okay. Okay. I think that's a fair question to ask that.

[03:03:38] I was most taken by the neighbors who live there because with respect to everyone that drops their dog off there, as a business, it's different to drop your animal off there because you need the business than to live there.

[03:03:54] That's a different thing. And the neighbors that live there, I thought, made a compelling case. I also will look at our zoning ordinance because I do need to make sure that we don't set down precedence, which is why I started this whole thing with a question to the county attorney, because the way it works here is we do something one time, the next person is going to come back and they're going to say, well, you did it for them. Why aren't you doing it for us? And I'm going to get a thousand emails. And listen, I hear the kind of messages and emails you get. You better believe I completely understand those

[03:04:29] kind of messages and really ugly emails that you might get. Look at my emails sometimes. They are, yeah, so I understand that completely, which is why I always just take a lot of time to do my due diligence. My staff did go out. I had two staff members to go out, including my chief of staff.

[03:04:47] They were very positively influenced, and they came back and reported to me. But there is some homework I will do before that. I may reach out to you and ask some more questions. Ms. Whistler, I would definitely reach out to you and ask some more questions.

[03:05:06] Overall, I love that you all love animals. I think that's, I mean, how could you not love that you love animals? And I wasn't kidding. This is one of the most enjoyable public hearings I have ever had, just hearing all the doggy names, you know, Jackson and Cinnamon, great doggy names, everybody, great names.

[03:05:25] But I just tend to be a little less impassioned and just a little more kind of down the line when I make these types of decisions, and I have to. I'm the chair of the county, and so what happens here will impact somebody who lives in another district, and I have to remember that as I'm chair of the county.

[03:05:46] And so I do appreciate it. I appreciate you, and I'll probably be making some phone calls. And my last thing is, Ms. Wissome, you and I can talk because I am going to want to know about that two years. I think that's a valid question. All right.

[03:06:02] Mr. Crony, would you like to close? I think I'll close with the names of my dogs. So it's Buddy and Giggs, and I did a foster fail with Buddy. So we fostered him, and my chief of staff took the brother.

[03:06:19] So, two, I fostered, she took the brother and I have Buddy and she has Iggy. So I'm a big, I want to foster again if I get time. You know, this board keeps me so busy, I never have time to foster. But I love dogs and, you know, I even have a cat that I rescued.

[03:06:38] So I'm a big animal person. So I look forward to working with you. You know, I am in support of your business. I just want you to know that and we'll work together. Thank you. Thank you. Madam Chair, I have a point of clarification before we vote, if that's okay. Yes.

[03:06:54] Does the motion include, as it was amended, does it include that it would have the requirement for 16 dogs? That is the motion that she made right now. It goes to a business meeting, though, so we haven't really— That's the motion that will go to the business meeting, and people can decide between now and then if they want that to be or not.

[03:07:16] Okay, thank you. That is the motion as it was presented by the— Can I ask to make it friendly to make it 25? You can ask. Can we make it friendly to make that 25? Not at this time. Okay. Thank you. All right. Thank you. The motion was made by Supervisor DeCrony.

[03:07:33] I second the motion. It will go to the July 3rd? July what? July what? 21st. We'll go to the July 21st business meeting, and we'll talk before that date. All in favor say aye. Any opposed?

[03:07:50] That motion will pass 801. Thank you, and thank you, everybody, for coming out. You all learned jazz hands really fast. That was really good. Very impressive. Supervisors, if we, and Loudon, if we do have anyone here who would like to speak on the JV, I forgot the name of it, the R&D Hamilton Academy, I'm gonna let everybody clear out because although that that item wasn't heard we we will hear you if you want to speak on that item so I'll let everyone clear

[03:08:26] out first I know when I saw what I love it I absolutely love it and that's

[03:08:47] hilarious Caleb definitely needs one it's adorable they got everyone who's just here we were not quite finished yet so if you guys if you don't know we're not we're not finished yet so if you guys could maybe if you're not here for the hey guys we're not finished yet we're not finished yet let's try to

[03:09:21] finish the meeting so we can all finish the meeting if anyone has anything for R&D Hamilton Academy I'm inviting them to speak right now so we're not finished yet we're not finished yet thank you very much that's okay thank you all right All right. So we're not hearing this item tonight, but it was

advertised, and so because it was advertised, I do need to ask, is anyone here who would like to speak on item number four, R&D Hamilton Academy? Anybody on the phone would like to speak on this one?

[03:10:01] No, Madam Chair. Wonderful. Seeing none and hearing none, I think that's it. We are adjourned.



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